IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
LUISA ARIAS MONTEALEGRE,	)	
Petitioner,	)	
	)	
and	)	Case No. 2024 D 7847
	)	
NICHOLAS BIANCHI,	)	
Respondent.	)	

EMERGENCY PETITION FOR TEMPORARY RESTRAINING ORDER AND OTHER ALTERNATIVE RELIEF

NOW COMES the Petitioner, **LUISA ARIAS MONTEALEGRE** ("Luisa"), by and through her attorneys, BERLIN MELZER LAW, LLC, and pursuant to 735 ILCS 5/11-101, 735 ILCS 5/11-102, 750 ILCS 5/501, all other relevant provisions of the Illinois Marriage and Dissolution of Marriage Act ("IMDMA") and Cook County Local Rule 13.4, and in support of her Emergency Petition for Temporary Restraining Order and Other Alternative Relief, respectfully states as follows:

BASIS OF EMERGENCY MOTION

1. This matter is brought forth as an emergency as Luisa just became aware that the Respondent, NICHOLAS BIANCHI ("Nicholas") has hired a management company and intends to immediately sell the property that the parties jointly own in Medellin, Columbia. If this Court does not take immediate action, Nicholas will continue to take actions which affect Luisa's interests in the marital estate and dissipate the marital estate at the expense of Luisa.

2. During the marriage, the parties started a business commonly known as Aribia LLC – MGMT (a series LLC).

3. On October 21, 2024, Luisa received a “Formal Notice of Removal” from Nicholas, stating that Luisa has been removed from Aribia LLC. Per the October 21, 2024, Formal Notice of Removal sent by Nicholas, Nicholas states that Luisa has “forfeited any vested interest in the Company” and that said interest shall be reallocated among the remaining members, Nicholas Bianchi, and Sharon Jones. A true and accurate copy of the October 21, 2024, Formal Notice is attached hereto as **Exhibit A.**

4. Upon information and belief, five (5) properties are held under Aribia LLC, the parent LLC, as five (5) separate series. The property located in Medellin, Columbia is held under the company as Aribia, LLC - Morada Mami in Medellin, Colombia (“Urbanziacion Plaza de Colores” Carrera 76 A #53 – 215 Int. 112, Apartamento Toree 2 y Carerra 76 A # 53 – 215 Int. 0026, Parquedero 226 Piso – 5.

5. Worse, the property in Medellin, Colombia which is a marital asset, is the property that Luisa’s seventy-three (73) year-old mother and brother currently reside in and have resided in for over a year.

6. Nicholas has continued to threaten Luisa’s mother and brother that they need to immediately vacate the property in Medellin, Colombia as he needs to show the property for sale.

7. Luisa is concerned that Nicholas will continue selling, liquidating, or otherwise disposing of Aribia LLC and / or any assets held within the company and associated series, including but not limited to the property in Medellin, Columbia, and any income earned from the same unless and thereby dissipate the marital estate if a temporary restraining order is not granted.

8. Nicholas has sole control over Aribia LLC and all assets held within the company, as well as all information related to the same, after unilaterally removing Luisa’s access to the same after the parties’ physical separation in or about August 1, 2024.

PETITION FOR TEMPORARY RESTRAINING ORDER AND OTHER ALTERNATIVE RELIEF

9. Luisa restates and realleges Paragraphs 1 –8 of the Emergency Basis set forth above as though fully set forth herein.

10. Luisa and Nicholas were lawfully married on December 30, 2022.

11. On October 22, 2024, Luisa filed her Petition for Dissolution of Marriage, which remains pending and undetermined by this Honorable Court.

12. The parties acquired certain marital assets during the marriage, including but not limited to, interests in the business commonly known as Aribia LLC - MGMT (a series LLC).

13. On or about, April 22, 2023, the parties executed a Limited Liability Company Operating Agreement for Aribia LLC, naming Luisa, Nicholas, and another individual, Sharon Jones, as members under the agreement. A true and accurate copy of the April 22, 2023, Aribia LLC Operating Agreement is incorporated herein by reference only as **Exhibit B**.

14. On or about February 29, 2024, the parties executed an Amended Limited Liability Company Operating Agreement for Aribia LLC. Luisa does not have a copy of the Attachment "A" setting forth the members to the Operating Agreement, however, only Nicholas and Luisa appear to be signatories of the document. A true and accurate copy of the February 29, 2024, Amended Aribia Limited Liability Company Operating Agreement is incorporated herein by reference only as **Exhibit C**.

15. On June 2, 2024, Luisa, and Nicholas, along with Ms. Jones, executed a Shareholder Agreement regarding Aribia LLC, setting forth shareholder stakes in the company such that Nicholas is allocated 85%, Luisa is allocated 10%, and Ms. Jones is allocated 5% under the Shareholder Agreement. A true and accurate copy of the June 2, 2024, Shareholder Agreement is incorporated herein by reference only as **Exhibit D.**

16. Aribia LLC was formally formed during the parties' marriage and is a marital asset.

17. The parties did not enter into any formal prenuptial or postnuptial agreements regarding the creation and/or allocation of marital and non-marital assets.

18. Luisa's marital interest in Aribia LLC has not been determined as of the filing of this instant Petition.

19. Upon information and belief, and according to the April 22, 2023, Operating Agreement, February 29, 2024, Amended Aribia Limited Liability Company Operating Agreement and the June 2, 2024, Shareholder Agreement in Luisa's possession (and incorporated herein by reference only as **Exhibits B - D**), five (5) properties are held under Aribia LLC, the parent LLC, as five (5) separate series. The properties are as follows:

a. Aribia LLC – Cozy Castle located at 550 West Surf Street, Apartment C504, Chicago, Illinois;

b. Aribia LLC – Lakeside Loft located at 541 West Addison Street, Apartment 3S, Chicago, Illinois;

c. Aribia LLC – City Studio located at 550 West Surf Street, C211, Chicago, Illinois;

d. Aribia LLC – Morada Mami in Medellin, Colombia ("Urbanziacion Plaza de Colores" Carrera 76 A #53 – 215 Int. 112, Apartamento Toree 2 y Carerra 76 A # 53 – 215 Int. 0026, Parquedero 226 Piso – 5; and

e. Aribia LLC – Apartment Arlene – 4343 North Clarendon Avenue, #1610, Chicago, Illinois 60613.

20. During the marriage, the parties previously resided together at property commonly known as 550 West Surf Street, Apartment C504, Chicago, Illinois 60657 ("Surf Street Property – C504"). The Surf Street Property – C504 is held under the series Aribia LLC – Cozy Castle. However, the Aribia LLC – Cozy Castle Operating Agreement is under Nicholas's sole control and in his possession and Luisa does not have access to the same.

21. On or about August 1, 2024, Luisa was forced to move out of the Surf Street Property – C504 due to ongoing harassment and verbal abuse perpetrated by Nicholas against Luisa and as a result of the overall breakdown of the parties' marital relationship.

22. Since Luisa moved out of the Surf Street Property-C504, Nicholas has restricted all Luisa's access to Aribia LLC's information, including but not limited to access to the properties, financial documentation, email, and any other information related to the company.

23. Nicholas has threatened Luisa regarding the company, claiming that she does not have any interest in the company, and that she does not have control over any aspect of the company or interests in the same.

24. On October 21, 2024, Luisa received a "Formal Notice of Removal" from Nicholas, stating that Luisa has been removed from Aribia LLC. Per the October 21, 2024, Formal Notice of Removal sent by Nicholas, Nicholas states that Luisa has "forfeited any vested interest in the Company" and that said interest shall be reallocated among the remaining members, Nicholas Bianchi, and Sharon Jones. Worse, Nicholas claims that the property in Medellin, Colombia will be listed for sale, which is the property that her mother and brother currently reside in. See **Exhibit A**.

25. On October 24, 2024, Luisa and her mother received a "Final Notice of Outstanding Rent Payments for Morada Mami Property – Immediate Action Required" from Nicholas stating in part as follows: 1) The total amount of $4,400 is due by October 31, 2024 and continued delays or nonpayment will adversely affect your standing and complicate your family's situation at Morada Mami; 2) that the property is currently being listed for sale; and 3) if payment is not received by October 31, 2024, the eviction process will be initiated. A true and accurate copy of the October 24, 2024, Final Notice is attached hereto as **Exhibit E.**

26. Additionally, on or about October 24, 2024 and October 28, 20224, Nicholas contacted Luisa's mother and brother and demanded payment for alleged rent due and threatened proceeding with legal eviction without payment and also stated his intention to sell the property in Medillin, Colombia. that they immediately vacate the property in Medellin, Colombia. A true and accurate copy of the October 24, 2024 and October 28, 2024 communication is attached hereto as **Group Exhibit F**.

27. Nicholas is not only attempting to unilaterally sell marital assets, but he is attempting to unilaterally change the structure of the company for which Luisa has a marital interest in.

28. Aribia LLC and the series associated with the same are marital property pursuant to Section 504 of the IMDMA and are to be considered as part of the overall allocation of the estate.

29. Nicholas has sole access and control over Aribia LLC and the series associated with the same, which includes the ability to transfer, sell, or otherwise dispose of the assets held within the same.

30. The Illinois Marriage and Dissolution of Marriage Act provides that upon filing of a Petition for Dissolution of Marriage, a dissolution action stay shall be in effect which prohibits either party from "transferring, encumbering, concealing, destroying, spending, damaging, or in any way disposing of any property…" 750 ILCS 5/501.1(a)(1).

31. Luisa respectfully requests this Court enter a Temporary Restraining Order prohibiting Nicholas from removing, transferring, selling, liquidating, or otherwise disposing of Aribia LLC and / or any assets held within the company and associated series, and any income earned from the same, until further order of Court or absent written agreement by the parties.

32. Luisa further requests this Court enter a Temporary Restraining Order prohibiting Nicholas from removing, transferring, or otherwise disposing of any net income received from the properties or other assets held within Aribia LLC and associated series until further order of Court or absent written agreement by the parties.

33. 750 ILCS 5/501(a)(2) provides in relevant part as follows:

> Temporary Relief. In all proceedings under this Act, temporary relief shall be as follows:
>
> (a) Either party may petition or move for: …
>
> (2) A temporary restraining order or preliminary injunction, accompanied by affidavit showing a factual basis for any of the following relief:…
>
> (iv) providing other injunctive relief proper in the circumstance…
>
> 750CS 5/501(a)(2) (West, 2024).

34. 750 ILCS 5/501(d) provides in pertinent part as follows:

> (d) A temporary order under this Section:
>
> (1) does not prejudice the rights of the parties or the child which are to be adjudicated at subsequent hearings in the proceeding;
>
> (2) may be revoked or modified before final judgment, on a showing by affidavit and upon hearing.
>
> 750CS 5/501(d) (West, 2024).

35. In order to obtain a temporary restraining order, Luisa must show the following: (1) she has a clearly ascertainable right that needs protection; (2) that she will suffer irreparable harm if relief is not granted; (3) that there is no adequate remedy at law for her injury; and (4) that she is likely to succeed on the merits. *Franz v. Calaco Development Corp.,* 2001 WL 712937, 4 (Ill.App 2nd Dist. 2001).

36. Once Luisa establishes the aforesaid elements, then the Court must balance the equities to determine whether a greater burden will be imposed to Nicholas if the temporary restraining order is granted than on Luisa if the temporary restraining order is denied. *Id*.

37. Moreover, the court should enter a temporary restraining order if the petitioner raises a "fair question" about the existence of a right claimed and the likelihood of success on the merits and provides a "summary showing" that an order is needed to "prevent immediate and irreparable harm." *People's Gas Light and Coke Co. v. City of Chicago*, 177 Ill.App.3d 353, 355 (1st Dist. 1985); *County of DuPage v. Gavrilos*, 359 Ill.App.3d 627, 634 (2nd Dist. 2005).

38. In determining if a party has the right to injunctive relief, there must be an "actual or presently threatened interference with another's rights." See *Callis, Papa, Jackstadt & Halloran, P.C. v. Norfolk and Western Railway Co.*, 195 Ill.2d 356, 371 (2001). In *Callis*, the Illinois Supreme Court further states, in relevant part that:

> "*[t]he act to be enjoined should be actually threatened and must be such as might be expected with reasonable certainty if not enjoined. Thus an injunction will not be granted on a mere suspicion of an intended wrong, or upon speculation or conjecture, or because there is a mere possibility or apprehension on the part of the plaintiff that some illegal act will be done.*" *Id.*

39. In this case, Luisa seeks a temporary restraining order and thereafter, a preliminary injunction, in order to prevent irreparable harm, as follows:

a. First, Luisa has an ascertainable right in need of protection as Aribia LLC and associated series are marital assets that belong to both Luisa and Nicholas.

b. Second, Luisa will face irreparable harm if injunctive relief is not granted. Unless Nicholas is restrained from accessing, dissipating, transferring, or liquidating Aribia LLC, associated series, and / or any assets/income held within the same, the value of parties' marital estate may significantly decrease, and Luisa may not receive an equitable distribution from the marital estate upon entry of the Judgment for Dissolution of Marriage.

c. Third, Luisa has no other adequate remedy at law. Although a money judgment typically makes a party whole, a money judgment is an inadequate remedy at law in this instance as an unjust division of marital property caused by Nicholas's unilateral actions will not be compensable by a money judgment.

d. Fourth, Luisa is likely to succeed on the merits as Luisa has a right to Aribia

LLC, associated series, and assets/income held within the same as these are marital assets.

40. The balancing of the hardships greatly favors Luisa as Nicholas would not be prejudiced by an Order prohibiting him from transferring, selling, liquidating, or otherwise disposing of Aribia LLC, associated series, and assets/income held within the same until further order of Court or absent a written agreement by the parties. Upon information and belief, Nicholas earns sufficient income and has access to marital funds. It would be inequitable to allow Nicholas to freely transfer, sell, liquidate, or otherwise dispose of the Aribia LLC, associated series, and assets/income held within the same.

41. This Court should enter a temporary restraining order to prohibit Nicholas from transferring, selling, liquidating, removing or otherwise disposing of Aribia LLC, associated series, and assets/income held within the same in order to preserve the parties' marital estate.

42. This Court should Order Nicholas to provide Luisa with complete records to Aribia LLC including but not limited to lease agreements, financial statements, profit and loss statements, expert valuations of any and all properties held within the company (i.e. appraisals, comparative market analyses, etc.), communication logs, copies of any checks / proof of rental payments for properties, and receipts / proof of expenses for the same.

43. The entry of a temporary restraining order or a preliminary injunction is necessary as it in the best interests of the parties and will help to preserve the marital estate.

44. This matter is brought forth as an emergency as Luisa just became aware that Nicholas has hired a management company and will intends to immediately sell the property that the parties jointly own in Medellin, Columbia. If this Court does not take immediate action, will continue to take actions which dissipate the marital estate at the expense of Luisa.

45. Additionally, Luisa is requesting that Nicholas be ordered to be restrained from contacting her family members regarding any threats of eviction and / or sale of the property in Medellin, Colombia until further order of Court.

46. An affidavit of Luisa in support of this Petition is attached hereto as **Exhibit G.**

WHEREFORE, the Petitioner, **LUISA ARIAS MONTEALEGRE**, by and through her attorneys, BERLIN MELZER LAW, LLC, respectfully requests:

A. That this Court find this matter to be an emergency;

B. That this Court enter an order *instanter* enjoining and restraining the Respondent through the means of a preliminary injunction from accessing, dissipating, transferring, liquidating, and/or selling, or otherwise disposing of the company commonly known as Aribia LLC, Aribia LLC's associated series, and assets/income held within Aribia LLC - MGMT until further Order of Court or absent a written agreement between the parties;

C. That this Court enter an order enjoining and restraining the Respondent through the means of a preliminary injunction from accessing, dissipating, transferring, or otherwise disposing of the company commonly known as Aribia LLC, Aribia LLC's associated series, and assets/income held within Aribia LLC - MGMT until further Order of Court or absent a written agreement between the parties;

D. That this Court enter an order requiring the Respondent to provide all information related to the complete records to Aribia LLC including but not limited to lease agreements, financial statements, profit and loss statements, expert valuations of any and all properties held within the company (i.e. appraisals, comparative market analyses, etc.), communication logs, copies of any checks / proof of rental payments for properties, and receipts / proof of expenses for the same and any other pertinent information;

E. That this Court enter an order restraining the Respondent from contacting the Petitioner's family members including but not limited to the Petitioner's mother and brother residing in Medellin, Colombia, regarding any threats of eviction and / or sale of the property in Medellin, Colombia until further order of Court; and

F. For any other such relief that this Honorable Court deems just and appropriate under the facts and circumstances of the case.

Respectfully submitted,

Molly Carmody

BERLIN MELZER LAW, LLC
Attorneys for Petitioner

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VERIFICATION

I, LUISA ARIAS MONTEALEGRE, under the penalties provided by law pursuant to 735 ILCS 5/1-109 (Section 1-109 of the Illinois Code of Civil Procedure), certifies that the statements set forth in the attached **Emergency Petition for Temporary Restraining Order and Other Alternative Relief** are true and correct, except as to matters therein stated to be on information and belief and as to such matters the undersigned certifies as aforesaid that she verily believes the same to be true.

Luisa Arias Montealegre (Oct 30, 2024 11:54 CDT)

____

Luisa Arias Montealegre

EXHIBIT A

FORMAL NOTICE OF REMOVAL

Date: October 21, 2024

To: Luisa Arias
From: Nicholas Bianchi, President ARIBIA LLC
CC: Sharon Jones, Member ARIBIA LLC
Subject: Formal Notice of Removal from ARIBIA LLC

Dear Luisa,

This letter serves as a formal notice of your removal from ARIBIA LLC, effective immediately. This decision has been made in accordance with the provisions outlined in the Operating Agreement and based on the following reasons:

1. Failure to Meet Obligations: You have not signed the previously requested resignation letter, nor have you fulfilled agreed-upon tasks by established deadlines.
2. Abandonment of Responsibilities: You have abandoned key responsibilities in guest relations, project management, and operational support.
3. Incompletion of Work: Your recommendation of your brother for renovation work at Cozy Castle has led to complications and incomplete tasks, further affecting the Company's operations.
4. Non-Response to Financial Obligations: You have failed to respond to the Final Demand for Payment dated October 7, 2024, regarding your outstanding financial obligations to ARIBIA LLC, totaling $17,820. Additionally, you have not made any payments toward the $1473.09 wireless bill for service and device payments/payoff from July 15-November 14 2024 as previously stated.
5. Financial and Operational Impact: Your actions have placed significant financial and operational burdens on the Company, leading to lost revenue and increased management difficulties.

Immediate Effect:

As of today, you are no longer authorized to act on behalf of ARIBIA LLC or represent the Company in any capacity. You will also forfeit any vested interests in the Company, which will be reallocated among the remaining members, Nicholas Bianchi and Sharon Jones, following a revaluation of ARIBIA LLC's assets and contributions.

FORMAL NOTICE OF REMOVAL

Sale of Morada Mami:

Morada Mami will be listed for sale. Given that your family resides in this property, it is critical that we manage this transition smoothly. We expect your cooperation in facilitating this process, which includes addressing any necessary arrangements for your family's continued residence during the sale period. Further details regarding the listing and implications will be provided separately.

Next Steps:

You are required to return any Company property or assets in your possession within 5 business days. Failure to comply with this request may result in further legal action to recover any outstanding debts owed to ARIBIA LLC.

This notice is final, and we expect your cooperation in this matter.

Best regards,

Nicholas Bianchi

President, ARIBIA LLC

EXHIBIT B

Limited Liability Company Agreement of
ARIBIA LLC
A Limited Liability Company

THIS OPERATING AGREEMENT (this "Agreement") of ARIBIA LLC**,** (the "Company"), is executed and agreed to, for good and valuable consideration, by the undersigned members (the "Members").

I. Formation.

A. State of Formation. This is a Limited Liability Company Operating Agreement (the "Agreement") for ARIBIA LLC, a Manager-managed Illinois limited liability company (the "Company") formed under and pursuant to Illinois law.

B. Operating Agreement Controls. To the extent that the rights or obligations of the Members or the Company under provisions of this Operating Agreement differ from what they would be under Illinois law absent such a provision, this Agreement, to the extent permitted under Illinois law, shall control.

C. Primary Business Address. The location of the primary place of business of the Company is:

550 W Surf St Apt 504, Chicago, Illinois 60657, or such other location as shall be selected from time to time by the Members.

D. Registered Agent and Office. The Company's initial agent (the "Agent") for service of process is Nicholas Bianchi. The Agent's registered office is 550 W Surf St Apt 504, Chicago, Illinois 60657. The Company may change its registered office, its registered agent, or both, upon filing a statement with the Illinois Secretary of State.

E. No State Law Partnership. No provisions of this Agreement shall be deemed or construed to constitute a partnership (including, without limitation, a limited partnership) or joint venture, or any Member a partner or joint venturer of or with any other Member, for any purposes other than federal and state tax purposes.

II. Purposes and Powers.

A. Purpose. The Company is created for the following business purpose:

ARIBIA LLC will acquire, repair, rehab, and manage rental properties.

B. Powers. The Company shall have all of the powers of a limited liability company set forth under Illinois law.

C. Duration. The Company's term shall commence upon the filing of an Articles of Organization and all other such necessary materials with the state of Illinois. The Company will operate until terminated as outlined in this Agreement unless:

1. A majority of the Members vote to dissolve the Company;

2. No Member of the Company exists, unless the business of the Company is continued in a manner permitted by Illinois law;

3. It becomes unlawful for either the Members or the Company to continue in business;

4. A judicial decree is entered that dissolves the Company; or

5. Any other event results in the dissolution of the Company under federal or Illinois law.

III. Members.

A. Members. The Members of the Company (jointly the "Members") and their Membership Interest at the time of adoption of this Agreement are as follows:

Nicholas A Bianchi, 85%
Luisa Arias, 10%

Sharon Jones, 5%

B. Initial Contribution. Each Member shall make an Initial Contribution to the Company. The Initial Contributions of each shall be as described in Attachment A, Initial Contributions of the Members .

No Member shall be entitled to interest on their Initial Contribution. Except as expressly provided by this Agreement, or as required by law, no Member shall have any right to demand or receive the return of their Initial Contribution. Any modifications as to the signatories' respective rights as to the receipt of their initial contributions must be set forth in writing signed by all interested parties.

C. Limited Liability of the Members. Except as otherwise provided for in this Agreement or otherwise required by Illinois law, no Member shall be personally liable for any acts, debts, liabilities or obligations of the Company beyond their respective Initial Contribution, including liability arising under a judgment, decree or order of a court. The Members shall look solely to the Company property for the return of their Initial Contribution, or value thereof, and if the Company property remaining after payment or discharge of the debts, liabilities or obligations of the Company is insufficient to return such Initial Contributions, or value thereof, no Member shall have any recourse against any other Member except as is expressly provided for by this Agreement or as otherwise allowed by law.

D. Death, Incompetency, Resignation or Termination of a Member. Should a Member die, be declared incompetent, or withdraw from the Company voluntarily or involuntarily, the remaining Members will have the option to buy out that Member's Membership Interest in the Company. If a Member is removed involuntarily, it must be by vote recorded in the official minutes. If a Member resigns, they should submit a notarized resignation letter to the Registered Agent. Should the Members agree to buy out the Membership Interest of the withdrawing Member, that Interest shall be paid for proportionately by the remaining Members, according to their existing Membership Interest and distributed proportionately among the remaining Members. The Members agree to hire an outside firm to assess the value of the Membership Interest.

The Members will have 90 days to decide if they want to buy the Membership Interest together and disperse it proportionately. If all Members do not agree to buy the Membership Interest, individual Members will then have the right to buy the Membership Interest individually. If more than one Member requests to buy the remaining Membership Interest, the Membership Interest will be paid for and split proportionately among those Members wishing to purchase the Membership Interest. If all Members agree by unanimous vote, the Company may choose to allow a non-Member to buy the Membership Interest thereby replacing the previous Member.

If no individual Member(s) finalize a purchase agreement by 60 days, the withdrawing Member, or their estate, may dispose of their Membership Interest however they see fit, subject to the limitations in Section III (E) below. If a Member is a corporation, trust, partnership, limited liability company or other entity and is dissolved or terminated, the powers of that Member may be exercised by its legal representative or successor.

The name of the Company may be amended upon the written and unanimous vote of all Members if a Member withdraws, dies, is found incompetent or is terminated.

E. Creation or Substitution of New Members. Any Member may assign in whole or in part its Membership Interest only after granting their fellow Members the right of first refusal, as established in Section III (D) above.

1. *Entire transfer*. If a Member transfers all of its Membership Interest, the transferee shall be admitted to the Company as a substitute Member upon its execution of an instrument signifying its agreement to be bound by the terms and conditions of this Agreement. Such admission shall be deemed effective immediately upon the transfer, and, simultaneously, the transferor Member shall cease to be a Member of the Company and shall have no further rights or obligations under this Agreement.

2. *Partial transfer*. If a Member transfers only a portion of its Membership Interest, the transferee shall be admitted to the Company as an additional Member upon its execution of an instrument signifying its agreement to be bound by the terms and conditions of this Agreement.

3. Whether a substitute Member or an additional Member, absent the written consent of all existing Members of the Company, the transferee shall be a limited Member and possess only the percentage of the monetary rights of the transferor Member that was transferred without any voting power as a Member in the Company.

F. Member Voting.

1. *Voting power*. The Company's Members shall each have voting power equal to their share of Membership Interest in the Company.

2. *Proxies*. At all meetings of Members, a Member may vote in person or by proxy executed in writing by the Member or by his duly authorized attorney-in-fact. Such proxy shall be delivered to the Secretary of the Company before or at the time of the meeting. No proxy

shall be valid after eleven months from the date of its execution, unless otherwise provided in the proxy.

G. Members' Duty to File Notices. The Members shall be responsible for preparation, maintenance, filing and dissemination of all necessary returns, notices, statements, reports, minutes or other information to the Internal Revenue Service, the state of Illinois, and any other appropriate state or federal authorities or agencies. Notices shall be filed in accordance with the section titled "Notices" below. The Members may delegate this responsibility to an Officer or a Manager at the Members' sole discretion.

H. Fiduciary Duties of the Members. The Members shall have no fiduciary duties whatsoever, whether to each other or to the Company, unless that Member is a Manager or an Officer of the Company, in which instance they shall owe only the respective fiduciary duties of a Manager or Officer, as applicable. No Member shall bear any liability to the Company or to other present or former Members by reason of being or having been a Member.

I. Waiver of Partition: Nature of Interest. Except as otherwise expressly provided in this Agreement, to the fullest extent permitted by law, each Member hereby irrevocably waives any right or power that such Member might have to cause the Company or any of its assets to be partitioned, to cause the appointment of a receiver for all or any portion of the assets of the Company, to compel any sale of all or any portion of the assets of the Company pursuant to any applicable law or to file a complaint or to institute any proceeding at law or in equity to cause the dissolution, liquidation, winding up or termination of the Company. No Member shall have any interest in any specific assets of the Company.

J. Care. The duty of care shall be limited to refraining from engaging in grossly negligent or reckless conduct, willful or intentional misconduct, or a knowing violation of law. To the extent that a Member exercises the managerial authority vested in a Manager under the Illinois Limited Liability Act, however, the Member shall be held to the standards of conduct under the Act including the duty of loyalty, the duty of care, and the duty of good faith and fair dealing which the Member shall owe to both the Company and to the other Members.

K. Members as Agents. A Member is not an agent of the Company for the purpose of its business solely by reason of being a Member. A Member is an agent of the Company for the purpose of its business, however, where the Member executes the act for apparently carrying on the Company's business or business of the kind carried on by the Company in the ordinary course, unless the Member had no authority to act for the Company in the particular matter and the person with whom the Member was dealing knew or had notice that the Member lacked authority. An act of a Member binds the Company even where the Member executed the act not apparently for carrying on the Company's business or business of the kind carried on by the Company in the ordinary course only if the act was authorized by the other Members.

IV. Accounting and Distributions.

A. Fiscal Year. The Company's fiscal year shall end on the last day of December.

B. Records. All financial records including tax returns and financial statements will be held at the Company's primary business address and will be accessible to all Members.

C. Distributions. Distributions shall be issued, as directed by the Company's Treasurer or Assistant Treasurer, on a quarterly basis, based upon the Company's fiscal year. The distribution shall not exceed the remaining net cash of the Company after making appropriate provisions for the Company's ongoing and anticipatable liabilities and expenses. Each Member shall receive a percentage of the overall distribution that matches that Member's percentage of Membership Interest in the Company.

V. Tax Treatment Election.

The Company has not filed with the Internal Revenue Service for treatment as a corporation. Instead, the Company will be taxed as a pass-through organization. The Members may elect for the Company to be treated as a C-Corporation, S-Corporation or a Partnership at any time.

VI. Board of Managers.

A. Creation of a Board of Managers. The Members shall create a board of Managers (the "Board") consisting of Managers appointed at the sole discretion of the Members and headed by the Chairman of the Board. The Members may serve as Managers and may appoint a Member to serve as the Chairman. The Members may determine at any time in their sole and absolute discretion the number of Managers to constitute the Board, subject in all cases to any requirements imposed by Illinois law. The authorized number of Managers may be increased or decreased by the Members at any time in their sole and absolute discretion, subject to Illinois law. Each Manager elected, designated or appointed shall hold office until a successor Manager is elected and qualified or until such Manager's earlier death, resignation or removal.

B. Powers and Operation of the Board of Managers. The Board shall have the power to do any and all acts necessary, convenient or incidental to or for the furtherance of the Company's purposes described herein, including all powers, statutory or otherwise.

1. *Meetings*. The Board may hold meetings, both regular and special, within or outside the state of Illinois. Regular meetings of the Board may be held without notice at such time and at such place as shall from time to time be determined by the Board. Special meetings of the Board may be called by the Chairman on not less than one day's notice to each Manager by telephone, electronic mail, facsimile, mail or any other means of communication.

   i. At all meetings of the Board, a majority of the Managers shall constitute a quorum for the transaction of business and, except as otherwise provided in any other provision of this Agreement, the act of a majority of the Managers present at any meeting at which there is a quorum shall be the act of the Board. If a quorum shall not be present at any meeting of the Board, the Managers present at such meeting may adjourn the meeting until a quorum shall be present. Any action required or permitted to be taken at any meeting of the Board may be taken without a meeting if all Managers consent thereto in writing, and the writing or writings are filed with the minutes of proceedings of the Board.

   ii. Managers may participate in meetings of the Board by means of telephone conference or similar communications equipment that allows all persons participating in the meeting to hear each other, and such participation in a meeting shall constitute presence in person at the meeting. If all the participants are participating by telephone conference or similar communications equipment, the meeting shall be deemed to be held at the primary business address of the Company.

C. <u>Compensation of Managers</u>. The Board shall have the authority to fix the compensation of Managers. The Managers may be paid their expenses, if any, of attendance at meetings of the Board, which may be a fixed sum for attendance at each meeting of the Board or a stated salary as Manager. No such payment shall preclude any Manager from serving the Company in any other capacity and receiving compensation therefor.

D. <u>Removal of Managers</u>. Unless otherwise restricted by law, any Manager or the entire Board may be removed, with or without cause, by the Members, and any vacancy caused by any such removal may be filled by action of the Members.

E. <u>Managers as Agents</u>. To the extent of their powers set forth in this Agreement, the Managers are agents of the Company for the purpose of the Company's business, and the actions of the Managers taken in accordance with such powers set forth in this Agreement shall bind the Company. An act of a Manager binds the Company, however, even where the Manager executed the act not apparently for carrying on the Company's business or business of the kind carried on by the Company in the ordinary course if the act was authorized either: (1) by a majority of the Managers where there is more than one Manager, or, (2) by consent of all the Members concerning matters that require unanimous Member-consent under 805 Ill. Comp. Stat. Ann. § 180/15-1. Except as provided in this Agreement, no Manager may bind the Company.

F. No Power to Dissolve the Company. Notwithstanding any other provision of this Agreement to the contrary or any provision of law that otherwise so empowers the Board, none of the Board shall be authorized or empowered, nor shall they permit the Company, without the affirmative vote of the Members, to institute proceedings to have the Company be adjudicated bankrupt or insolvent, or consent to the institution of bankruptcy or insolvency proceedings against the Company or file a petition seeking, or consent to, reorganization or relief with respect to the Company under any applicable federal or state law relating to bankruptcy, or consent to the appointment of a receiver, liquidator, assignee, trustee (or other similar official) of the Company or a substantial part of its property, or make any assignment for the benefit of creditors of the Company, or admit in writing the Company's inability to pay its debts generally as they become due, or, to the fullest extent permitted by law, take action in furtherance of any such action.

G. Duties of the Board. The Board and the Members shall cause the Company to do or cause to be done all things necessary to preserve and keep in full force and effect its existence, rights (charter and statutory) and franchises. The Board also shall cause the Company to:

1. Maintain its own books, records, accounts, financial statements, stationery, invoices, checks and other limited liability company documents and bank accounts separate from any other person;

2. At all times hold itself out as being a legal entity separate from the Members and any other person and conduct its business in its own name;

3. File its own tax returns, if any, as may be required under applicable law, and pay any taxes required to be paid under applicable law;

4. Not commingle its assets with assets of the Members or any other person, and separately identify, maintain and segregate all Company assets;

5. Pay its own liabilities only out of its own funds, except with respect to organizational expenses;

6. Maintain an arm's length relationship with the Members, and, with respect to all business transactions entered into by the Company with the Members, require that the terms and

conditions of such transactions (including the terms relating to the amounts paid thereunder) are the same as would be generally available in comparable business transactions if such transactions were with a person that was not a Member;

7. Pay the salaries of its own employees, if any, out of its own funds and maintain a sufficient number of employees in light of its contemplated business operations;

8. Not guarantee or become obligated for the debts of any other person or hold out its credit as being available to satisfy the obligations of others;

9. Allocate fairly and reasonably any overhead for shared office space;

10. Not pledge its assets for the benefit of any other person or make any loans or advances to any person;

11. Correct any known misunderstanding regarding its separate identity;

12. Maintain adequate capital in light of its contemplated business purposes;

13. Cause its Board to meet or act pursuant to written consent and keep minutes of such meetings and actions and observe all other Illinois limited liability company formalities;

14. Make any permitted investments directly or through brokers engaged and paid by the Company or its agents;

15. Not require any obligations or securities of the Members; and

16. Observe all other limited liability formalities.

Failure of the Board to comply with any of the foregoing covenants shall not affect the status of the Company as a separate legal entity or the limited liability of the Members.

H. Prohibited Actions of the Board. Notwithstanding any other provision of this Agreement to the contrary or any provision of law that otherwise so empowers the Board, none of the Board on behalf of the Company, shall, without the unanimous approval of the Board, do any of the following:

1. Guarantee any obligation of any person;

2. Engage, directly or indirectly, in any business or activity other than as required or permitted to be performed pursuant to the Company's Purpose as described in Section II (A) above; or

3. Incur, create or assume any indebtedness other than as required or permitted to be performed pursuant to the Company's Purpose as described in Section II (A) above.

VII. Officers.

A. Appointment and Titles of Officers. The initial Officers shall be appointed by the Members and shall consist of at least a Chairman, a President, a Secretary and a Treasurer. Any additional or substitute Officers shall be chosen by the Board. The Board may also choose one or more Vice-President, Assistant Secretaries and Assistant Treasurers. Any number of offices may be held by the same person, as permitted by Illinois law. The Board may appoint such other Officers and agents as it shall deem necessary or advisable who shall hold their offices for such terms and shall exercise such powers and perform such duties as shall be determined from time to time by the Board. The Officers and agents of the Company shall hold office until their successors are chosen and qualified. Any Officer elected or appointed by the Members or the Board may be removed at any time, with or without cause, by the affirmative vote of a majority of the Board. Any vacancy occurring in any office of the Company shall be filled by the Board. Unless the Board decides otherwise, if the title of an Officer is one commonly used for officers of a limited liability company formed under Illinois law, the assignment of such title shall constitute the delegation to such person of the authorities and duties that are normally associated with that office.

1. *Chairman*. The Chairman shall be the chief executive officer of the Company, shall preside at all meetings of the Board, shall be responsible for the general and active management of the business of the Company and shall see that all orders and resolutions of the Board are carried into effect. The Chairman shall execute all contracts on behalf of the Company, except:

i. where required or permitted by law or this Agreement to be otherwise signed and executed;

ii. where signing and execution thereof shall be expressly delegated by the Board to some other Officer or agent of the Company.

2. *President*. In the absence of the Chairman or in the event of the Chairman's inability to act, the President shall perform the duties of the Chairman, and when so acting, shall have all the powers of and be subject to all the restrictions upon the Chairman. The President shall perform such other duties and have such other powers as the Board may from time to time prescribe.

3. *Vice-Presidents*. In the absence of the Chairman and President or in the event of their inability to act, any Vice-Presidents in the order designated by the Board (or, in the absence of any designation, in the order of their election) shall perform the duties of the Chairman, and when so acting, shall have all the powers of and be subject to all the restrictions upon the Chairman. Vice-Presidents, if any, shall perform such other duties and have such other powers as the Board may from time to time prescribe.

4. *Secretary and Assistant Secretary*. The Secretary shall be responsible for filing legal documents and maintaining records for the Company. The Secretary shall attend all meetings of the Board and record all the proceedings of the meetings of the Company and of the Board in a book to be kept for that purpose. The Secretary shall give, or cause to be given, notice of all meetings of the Board, as required in this Agreement or by Illinois law, and shall perform such other duties as may be prescribed by the Board or the Chairman, under whose supervision the Secretary shall serve. The Secretary shall cause to be prepared such reports and/or information as the Company is required to prepare by applicable law, other than financial reports. The Assistant Secretary, or if there be more than one, the Assistant Secretaries in the order determined by the Board (or if there be no such determination, then in order of their election), shall, in the absence of the Secretary or in the event of the Secretary's inability to act, perform the duties and exercise the powers of the Secretary and shall perform such other duties and have such other powers as the Board may from time to time prescribe.

5. *Treasurer and Assistant Treasurer*. The Treasurer shall have the custody of the Company funds and securities and shall keep full and accurate accounts of receipts and disbursements in books belonging to the Company according to generally accepted accounting practices, using a fiscal year ending on the last day of the month of December. The Treasurer shall deposit all moneys and other valuable effects in the name and to the credit of the Company in such depositories as may be designated by the Board. The Treasurer shall distribute the Company's profits to the Members. The Treasurer shall disburse the funds of the Company as may be ordered by the Board and shall render to the Chairman and to the Board, at their

regular meetings or when the Members so require, an account of all of the Treasurer's transactions and of the financial condition of the Company. As soon as practicable after the end of each fiscal year of the Company, the Treasurer shall prepare a statement of financial condition as of the last day of the Company's fiscal year, and a statement of income and expenses for the fiscal year then ended, together with supporting schedules. Each of said annual statements shall be prepared on an income tax basis and delivered to the Board forthwith upon its preparation. In addition, the Treasurer shall keep all financial records required to be kept pursuant to Illinois law. The Assistant Treasurer, or if there shall be more than one, the Assistant Treasurers in the order determined by the Board (or if there be no such determination, then in the order of their election), shall, in the absence of the Treasurer or in the event of the Treasurer's inability to act, perform the duties and exercise the powers of the Treasurer and shall perform such other duties and have such other powers as the Board may from time to time prescribe.

B. Officers as Agents. The Officers, to the extent of their powers set forth in this Agreement or otherwise vested in them by action of the Board not inconsistent with this Agreement, are agents of the Company for the purpose of the Company's business, and the actions of the Officers taken in accordance with such powers shall bind the Company.

VIII. Fiduciary Duties of the Board and Officers.

A. Loyalty and Care. Except to the extent otherwise provided herein, each Manager and Officer shall have a fiduciary duty of loyalty and care similar to that of managers of business corporations organized under the laws of Illinois.

B. Competition with the Company. The Managers and Officers shall refrain from dealing with the Company in the conduct of the Company's business as or on behalf of a party having an interest adverse to the Company unless a majority, by individual vote, of the Board of Managers excluding the interested Manager, consents thereto. The Managers and Officers shall refrain from competing with the Company in the conduct of the Company's business unless a majority, by individual vote, of the Board of Managers excluding the interested Manager, consents thereto.

C. Duties Only to the Company. The Managers' and Officers' fiduciary duties of loyalty and care are to the Company and not to the other Managers or other Officers. The Managers and Officers shall owe fiduciary duties of disclosure, good faith and fair dealing to the Company and to the other Managers, but shall owe no such duties to Officers unless the Officer is a Manager. A Manager or Officer who so performs their duties shall not have any liability by reason of being or having been a Manager or an Officer.

D. Reliance on Reports. In discharging the Manager's or Officer's duties, a Manager or Officer is entitled to rely on information, opinions, reports, or statements, including financial statements and other financial data, if prepared or presented by any of the following:

1. One or more Members, Managers, or employees of the Company whom the Manager reasonably believes to be reliable and competent in the matters presented.

2. Legal counsel, public accountants, or other persons as to matters the Manager reasonably believes are within the persons' professional or expert competence.

3. A committee of Members or Managers of which the affected Manager is not a participant, if the Manager reasonably believes the committee merits confidence.

IX. Dissolution.

A. Limits on Dissolution. The Company shall have a perpetual existence, and shall be dissolved, and its affairs shall be wound up only upon the provisions established in Section II (C) above.

Notwithstanding any other provision of this Agreement, the Bankruptcy of any Member shall not cause such Member to cease to be a Member of the Company and upon the occurrence of such an event, the business of the Company shall continue without dissolution.

Each Member waives any right that it may have to agree in writing to dissolve the Company upon the Bankruptcy of any Member or the occurrence of any event that causes any Member to cease to be a Member of the Company.

B. Winding Up. Upon the occurrence of any event specified in Section II(C), the Company shall continue solely for the purpose of winding up its affairs in an orderly manner, liquidating its assets, and satisfying the claims of its creditors. One or more Members, selected by the remaining Members, shall be responsible for overseeing the winding up and liquidation of the Company, shall take full account of the liabilities of the Company and its assets, shall either cause its assets to be distributed as provided under this Agreement or sold, and if sold as promptly as is consistent with obtaining the fair market value thereof, shall cause the proceeds therefrom, to the extent sufficient therefor, to be applied and distributed as provided under this Agreement.

C. Distributions in Kind. Any non-cash asset distributed to one or more Members in liquidation of the Company shall first be valued at its fair market value (net of any liability secured by such asset that such Member assumes or takes subject to) to determine the profits or losses that would have resulted if such asset were sold for such value, such profit or loss shall then be allocated as provided under this Agreement. The fair market value of such asset shall be determined by the Members or, if any Member objects, by an independent appraiser (any such appraiser must be recognized as an expert in valuing the type of asset involved) approved by the Members.

D. Termination. The Company shall terminate when (i) all of the assets of the Company, after payment of or due provision for all debts, liabilities and obligations of the Company, shall have been distributed to the Members in the manner provided for under this Agreement and (ii) the Company's registration with the state of Illinois shall have been canceled in the manner required by Illinois law.

E. Accounting. Within a reasonable time after complete liquidation, the Company Treasurer shall furnish the Members with a statement which shall set forth the assets and liabilities of the Company as at the date of dissolution and the proceeds and expenses of the disposition thereof.

F. Limitations on Payments Made in Dissolution. Except as otherwise specifically provided in this Agreement, each Member shall only be entitled to look solely to the assets of the Company for the return of its Initial Contribution and shall have no recourse for its Initial Contribution and/or share of profits (upon dissolution or otherwise) against any other Member.

G. Notice to Illinois Authorities. Upon the winding up of the Company, the Member with the highest percentage of Membership Interest in the Company shall be responsible for the filing of all appropriate notices of dissolution with Illinois and any other appropriate state or federal authorities or agencies as may be required by law. In the event that two or more Members have equally high percentages of Membership Interest in the Company, the Member with the longest continuous tenure as a Member of the Company shall be responsible for the filing of such notices.

X. Exculpation and Indemnification.

A. No Member, Manager, Officer, employee or agent of the Company and no employee, agent or affiliate of a Member (collectively, the "Covered Persons") shall be liable to the Company or any other person who has an interest in or claim against the Company for any loss, damage or claim incurred by reason of any act or omission performed or omitted by such Covered Person in good faith on behalf of the Company and in a manner reasonably believed to be within the scope of the authority conferred on such Covered Person by this Agreement, except that a Covered Person shall be liable for any such loss, damage or claim incurred by reason of such Covered Person's gross negligence or willful misconduct.

B. To the fullest extent permitted by applicable law, a Covered Person shall be entitled to indemnification from the Company for any loss, damage or claim incurred by such Covered

Person by reason of any act or omission performed or omitted by such Covered Person in good faith on behalf of the Company and in a manner reasonably believed to be within the scope of the authority conferred on such Covered Person by this Agreement. Expenses, including legal fees, incurred by a Covered Person defending any claim, demand, action, suit or proceeding shall be paid by the Company. The Covered Person shall be liable to repay such amount if it is determined that the Covered Person is not entitled to be indemnified as authorized in this Agreement. No Covered Person shall be entitled to be indemnified in respect of any loss, damage or claim incurred by such Covered Person by reason of such Covered Person's gross negligence or willful misconduct with respect to such acts or omissions. Any indemnity under this Agreement shall be provided out of and to the extent of Company assets only.

C. A Covered Person shall be fully protected in relying in good faith upon the records of the Company and upon such information, opinions, reports or statements presented to the Company by any person as to matters the Covered Person reasonably believes are within such other person's professional or expert competence and who has been selected with reasonable care by or on behalf of the Company, including information, opinions, reports or statements as to the value and amount of the assets, liabilities, or any other facts pertinent to the existence and amount of assets from which distributions to the Members might properly be paid.

D. To the extent that, at law or in equity, a Covered Person has duties (including fiduciary duties) and liabilities relating thereto to the Company or to any other Covered Person, a Covered Person acting under this Agreement shall not be liable to the Company or to any other Covered Person for its good faith reliance on the provisions of this Agreement. The provisions of the Agreement, to the extent that they restrict the duties and liabilities of a Covered Person otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Covered Person.

E. The foregoing provisions of this Article X shall survive any termination of this Agreement.

XI. Insurance.

The Company shall have the power to purchase and maintain insurance, including insurance on behalf of any Covered Person against any liability asserted against such person and incurred by such Covered Person in any such capacity, or arising out of such Covered Person's status as an agent of the Company, whether or not the Company would have the power to indemnify such person against such liability under the provisions of Article X or under applicable law. This is separate and apart from any business insurance that may be required as part of the business in which the Company is engaged.

XII. Settling Disputes.

All Members agree to enter into mediation before filing suit against any other Member or the Company for any dispute arising from this Agreement or Company. Members agree to attend one session of mediation before filing suit. If any Member does not attend mediation, or the dispute is not settled after one session of mediation, the Members are free to file suit. Any law suits will be under the jurisdiction of the state of Illinois.

XIII. Independent Counsel.

All Members entering into this Agreement have been advised of their right to seek the advice of independent legal counsel before signing this Agreement. All Members and each of them have entered into this Agreement freely and voluntarily and without any coercion or duress.

XIV. General Provisions.

A. Notices. All notices, offers or other communications required or permitted to be given pursuant to this Agreement shall be in writing and may be personally served or sent by United States mail and shall be deemed to have been given when delivered in person or three (3) business days after deposit in United States mail, registered or certified, postage prepaid, and properly addressed, by or to the appropriate party.

B. Number of Days. In computing the number of days (other than business days) for purposes of this Agreement, all days shall be counted, including Saturdays, Sundays and holidays; provided, however, that if the final day of any time period falls on a Saturday, Sunday or holiday on which national banks are or may elect to be closed, then the final day shall be deemed to be the next day which is not a Saturday, Sunday or such holiday.

C. Execution of Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be an original, and all of which shall together constitute one and the same instrument.

D. Severability. The provisions of this Agreement are independent of and separable from each other, and no provision shall be affected or rendered invalid or unenforceable by virtue of the fact that for any reason any other or others of them may be invalid or unenforceable in whole or in part.

E. Headings. The Article and Section headings in this Agreement are for convenience and they form no part of this Agreement and shall not affect its interpretation.

F. Controlling Law. This Agreement shall be governed by and construed in all respects in accordance with the laws of the state of Illinois (without regard to conflicts of law principles thereof).

G. Application of Illinois Law. Any matter not specifically covered by a provision of this Agreement shall be governed by the applicable provisions of Illinois law.

H. Amendment. This Agreement may be amended only by written consent of the Board and the Members. Upon obtaining the approval of any such amendment, supplement or restatement as to the Certificate, the Company shall cause a Certificate of Amendment or Amended and Restated Certificate to be prepared, executed and filed in accordance with Illinois law.

I. Entire Agreement. This Agreement contains the entire understanding among the parties hereto with respect to the subject matter hereof, and supersedes all prior and contemporaneous agreements and understandings, inducements or conditions, express or implied, oral or written, except as herein contained.

IN WITNESS WHEREOF, the Members have executed and agreed to this Limited Liability Company Operating Agreement, which shall be effective as of August 01, 2022.

By: Nicholas A Bianchi Date: 04/22/2023

Nicholas A Bianchi

By: Luisa Arias Date: 04/22/2023

Luisa Arias

By: Sharon Jones Date: 04/22/2023

Sharon Jones

ATTACHMENT A
Initial Contributions of the Members

The Initial Contributions of the Members of ARIBIA LLC are as follows:

Nicholas A Bianchi
  Contribution:
  Cash: $122,500.00
  Professional services & project management valued at $5,000.00

Luisa Arias
  Contribution:
  Property management & interior design valued at $15,000.00

Sharon Jones
  Contribution:
  Administration valued at $7,500.00

EXHIBIT C

AMENDMENT

ARIBIA LLC OPERATING AGREEMENT

ARIBIA LLC

February 29, 2024

This Amendment is made effective as of March 1, 2024, by the members listed in Attachment A ("Members") of ARIBIA LLC, an Illinois limited liability company ("Company"). The Members agree to amend the ARIBIA LLC Operating Agreement dated August 1, 2022 ("Original Agreement"), to incorporate a series structure and refine foundational aspects of the Company as outlined herein. Except as explicitly modified by this Amendment, the Original Agreement remains in full force and effect.

PREAMBLE

The Members recognize the need to adapt the structure of ARIBIA LLC to accommodate evolving business strategies and operational efficiencies. This Amendment introduces a series structure under the ARIBIA LLC umbrella, enhancing the Company's capacity to manage diverse assets and liabilities more effectively while aligning with Illinois Series LLC regulations.

ARTICLE I: FORMATION, NAME, AND STRUCTURE

1.1 ESTABLISHMENT

This Amendment reaffirms the establishment of ARIBIA LLC as a Manager-managed limited liability company formed under the laws of Illinois. The governance of the Company, including its series, is subject to this Agreement, as amended, superseding default state provisions where applicable.

1.2 NAME AND SERIES STRUCTURE

ARIBIA LLC shall encompass several distinct series, including but not limited to:

a. **ARIBIA LLC - MGMT**: Focused on comprehensive management functions across all properties.
b. **ARIBIA LLC - COZY CASTLE**: Holding title to and overseeing the property located at 550 W Surf St C504, Chicago, IL.
c. **ARIBIA LLC - LAKESIDE LOFT:** Holding title to the property at 541 W Addison St Apt 3S, Chicago, IL.

d. **ARIBIA LLC - CITY STUDIO:** Holding title to the property at 550 W Surf St C211, Chicago, IL.
e. **ARIBIA LLC - INTL:** Managing international properties and investments.
f. **ARIBIA LLC - MORADA MAMI:** Holding title to property in Medellín, Colombia at “URBANIZACION PLAZA DE COLORES” CARRERA 76 A # 53 - 215 INT. 1112 (DIRECCION CATASTRAL) APARTAMENTO TORRE 2 y CARRERA 76 A # 53 - 215 INT. 0226 (DIRECCION CATASTRAL) PARQUEADERO 226 PISO-5
g. **ARIBIA LLC - APT ARLENE:** Holding title to future Airbnb investment properties

Each series will operate with a unique business purpose, holding assets and liabilities independently, in strict adherence to the Illinois Series LLC regulations, ensuring operational autonomy and liability protection across the series.

1.3 PRINCIPAL PLACE OF BUSINESS

The principal place of business of ARIBIA LLC is confirmed at 550 W Surf St Apt 504, Chicago, Illinois, 60657. The Company retains the flexibility to relocate the principal place of business as necessary, with due notification to all Members and in compliance with regulatory requirements.

1.4 REGISTERED AGENT AND OFFICE

Nicholas Bianchi is reaffirmed as the initial registered agent, with the registered office located at the principal place of business. Changes to the registered agent or office location will be made in accordance with Illinois law and documented in the Company's records.

1.5 TERM

The term of ARIBIA LLC is perpetual, commencing upon the filing of its Articles of Organization with the Illinois Secretary of State. This Amendment introduces provisions for the establishment, operation, and potential dissolution of series under ARIBIA LLC, further detailed in subsequent sections.

1.6 SERIES MANAGEMENT ROLES AND RESPONSIBILITIES

Each series under ARIBIA LLC, as outlined in Section 1.2, shall be managed by a designated Manager or a team of Managers. These Managers are responsible for the day-to-day operations, strategic decision-making, and financial management of their respective series. The specific roles and responsibilities of Managers within each series include, but are not limited to:

Operational Oversight: Ensuring the efficient management of the series' properties, including maintenance, tenant relations, and compliance with applicable laws and regulations

Strategic Planning: Developing and implementing long-term strategies for growth and profitability of the series, in alignment with ARIBIA LLC's overall objectives.

Financial Management: Overseeing the financial affairs of the series, including budgeting, financial reporting, and managing investments and expenditures.

Compliance and Record-Keeping: Maintaining accurate records of the series' operations, financial transactions, and compliance documentation, ensuring transparency and accountability.

Communication: Facilitating effective communication between the series' management, Members of ARIBIA LLC, and external stakeholders, including tenants, service providers, and regulatory bodies.

The appointment of Managers, their qualifications, and the removal process will be governed by the Operating Agreement of ARIBIA LLC and further detailed in the operating agreements specific to each series.

1.7 COMPLIANCE WITH ILLINOIS SERIES LLC REGULATIONS

ARIBIA LLC and all its series shall adhere to the Illinois Series LLC regulations, ensuring that each series is properly established, operated, and maintained as an independent entity under the umbrella of ARIBIA LLC. This includes compliance with legal requirements for series formation, asset segregation, liability protection, and financial reporting.

ARTICLE II: SERIES ESTABLISHMENT AND FUNCTIONS

2.1 AUTHORIZATION AND ESTABLISHMENT OF SERIES

Pursuant to the Illinois Limited Liability Company Act and this Agreement, ARIBIA LLC is authorized to create multiple series. Each series will have distinct objectives, assets, and liabilities, and operate under specific business purposes, thereby holding separate rights and responsibilities.

2.2 DESIGNATION OF SERIES

The Company hereby designates the following series under the ARIBIA LLC umbrella, each with a distinct operational focus and designated assets and liabilities:

ARIBIA LLC - MGMT: Focused on comprehensive management functions across all domestic properties.

ARIBIA LLC - COZY CASTLE: Holding and/or managing the title to and overseeing the property located at 550 W Surf St C504, Chicago, IL.

ARIBIA LLC - LAKESIDE LOFT: Holding and/or managing the title to the property at 541 W Addison St Apt 3S, Chicago, IL.

ARIBIA LLC - CITY STUDIO: Holding and/or managing the title to the property at 550 W Surf St C211, Chicago, IL.

ARIBIA LLC - INTL: Managing international properties and investments.

ARIBIA LLC - MORADA MAMI: Holding title to property in Medellín, Colombia at "URBANIZACION PLAZA DE COLORES" CARRERA 76 A # 53 - 215 INT. 1112 (DIRECCION CATASTRAL) APARTAMENTO TORRE 2 y CARRERA 76 A # 53 - 215 INT. 0226 (DIRECCION CATASTRAL) PARQUEADERO 226 PISO-5

ARIBIA LLC - APT ARLENE: Holding title to future investment properties

2.3 OPERATIONAL AND MANAGEMENT FRAMEWORK

Each series will operate under a management contract with either ARIBIA LLC - MGMT for domestic properties or ARIBIA LLC - INTL for international operations. These contracts will outline the scope of management responsibilities, ensuring efficient property management and operational excellence.

2.4 ASSET AND LIABILITY SEGREGATION

To comply with Illinois Series LLC regulations, each series will maintain independent financial records and bank accounts. Assets and liabilities will be segregated to ensure that the obligations of one series do not affect the assets or liabilities of any other series or the Company as a whole.

2.5 SERIES GOVERNANCE AND DECISION-MAKING

Each series shall be governed by a series-specific operating agreement that outlines the decision-making processes, member responsibilities, and the management structure. This will ensure that each series operates autonomously while remaining aligned with the overarching goals of ARIBIA LLC.

2.6 COMPLIANCE AND REGULATORY ADHERENCE

ARIBIALLC and its series will adhere to all relevant state and federal laws and regulations. This includes maintaining accurate records, fulfilling reporting requirements, and ensuring that all series operate within the legal framework established for Series LLCs in Illinois.

ARTICLE III: MEMBERSHIP, CONTRIBUTIONS, AND DISTRIBUTIONS

3.1 MEMBERSHIP AND OWNERSHIP INTERESTS

Membership within ARIBIA LLC is defined by ownership interests, signifying each member's share in the profits, losses, and distributions of the Company and its individual series. The membership structure is adapted to accommodate series-specific memberships, ensuring that each series operates under clear ownership guidelines.

Series-Specific Membership: Each series under ARIBIA LLC may have its own set of members, distinct from those of other series or the parent LLC. Membership interests in a series are determined by the contribution to and ownership stake in that specific series.

3.2 CAPITAL CONTRIBUTIONS

Members are required to contribute capital to the Company and any series they are part of, as outlined in the original Operating Agreement and further specified in series-specific operating agreements.

Initial and Additional Contributions: Initial contributions are specified at the time of membership inception, with potential for additional contributions to support series operations or expansion.

Series Contributions: Members of a specific series are obliged to contribute towards the series' capital needs, with contributions proportional to their ownership interest, unless unanimously agreed otherwise.

3.3 ALLOCATION OF PROFITS AND LOSSES

Profits and losses from the Company and each series are allocated to members in line with their respective ownership interests. This includes operational profits, investment returns, and financial gains or losses.

Series-Specific Allocation: Profits and losses within each series are allocated among the series members, ensuring that financial performance directly impacts those invested in the series.

3.4 DISTRIBUTIONS

Distributions from operational profits or other gains will be made to members based on their ownership interests. The timing and volume of distributions are determined by the management, considering the financial health and operational needs of ARIBIA LLC and its series.

Series Distributions: Distributions within a series are made exclusively to the members of that series, reflecting the series' financial performance and cash flow needs.

3.5 ADJUSTMENTS TO MEMBERSHIP INTERESTS

Adjustments to membership interests within the Company or any series can occur due to additional contributions, withdrawals, or redistribution of interests, ensuring equitable treatment of all members.

Series Membership Adjustments: Adjustments within a series are handled in accordance with the series' operating agreement, reflecting changes in capital contribution or ownership stakes.

3.6 WITHDRAWAL, TERMINATION, AND ADDITION OF MEMBERS

Procedures for member withdrawal, termination of membership interests, and addition of new members are specified, adapting for series-specific considerations.

Series Membership Changes: Changes to membership within a series, including withdrawal and addition of new members, require consent from existing members of that series and must align with the terms set in the series' operating agreement.

ARTICLE IV: GOVERNANCE AND DECISION-MAKING

4.1 GOVERNANCE STRUCTURE

ARIBIA LLC and each of its series adhere to a manager-managed governance structure. The Company is governed by a Board of Managers ("the Board"), which oversees strategic decisions and ensures compliance with the Operating Agreement and applicable laws. Each series within ARIBIA LLC is managed by one or more appointed Managers, who are responsible for the day-to-day operations and decision-making within the series.

4.2 MANAGERIAL AUTHORITY AND RESPONSIBILITIES

Managers for each series are vested with the authority to manage the affairs of the series in accordance with the goals and policies established by the Board. Their responsibilities include, but are not limited to, operational management, financial oversight, tenant relations, and compliance with legal and regulatory requirements. The specific roles and duties of Managers will be further detailed in the operating agreements for each series.

4.3 MEMBER INVOLVEMENT IN DECISION-MAKING

Members of ARIBIA LLC retain certain rights to vote on major matters affecting the Company and its series, as outlined in the Operating Agreement. This includes decisions on amendments to the Operating Agreement, significant financial transactions, changes in the management structure, and dissolution of the Company or any of its series. Voting rights are allocated based on the members' respective ownership interests, ensuring that decision-making reflects the interests of the members.

4.4 DECISION-MAKING PROCESSES

Routine operational decisions within each series are delegated to the series Managers, enabling efficient management and responsiveness to day-to-day needs. Strategic decisions that have a significant impact on the Company or its series require approval by the Board, with some decisions requiring a vote of the members in accordance with the criteria set forth in the Operating Agreement.

4.5 CONFLICT RESOLUTION

In the event of disputes arising within the Company, between series, or among members, a structured conflict resolution process will be initiated. This may involve mediation, arbitration, or other dispute resolution mechanisms as agreed upon by the parties involved. The Board plays a central role in facilitating the resolution of disputes, ensuring that resolutions are in the best interests of ARIBIA LLC and its series.

4.6 TRANSPARENCY AND REPORTING

ARIBIA LLC is committed to maintaining transparency in its governance and decision-making processes. Regular reports on financial performance, strategic initiatives, and other important matters will be provided to all members. Annual meetings will be held to discuss these reports, provide updates on the Company's operations, and offer members the opportunity to participate in discussions and decision-making.

ARTICLE V: FINANCIAL MANAGEMENT, PROFIT ALLOCATION, AND DISTRIBUTIONS

5.1 FINANCIAL OVERSIGHT AND MANAGEMENT

The Board is responsible for the overall financial oversight of ARIBIA LLC and its series, ensuring adherence to sound financial management practices. This includes the approval of annual budgets, significant financial transactions, and investments.

Managers of each series are tasked with the day-to-day financial management within their scope, including budgeting, managing expenses, and financial reporting, in alignment with the strategic goals set by the Board.

5.2 PROFIT AND LOSS ALLOCATION

Profits and losses within ARIBIA LLC and each series will be calculated separately, ensuring that each series' financial performance is accurately reflected. Allocation to Members will be based on their respective ownership interests in the Company or specific series.

The allocation process will be transparent, with clear documentation and regular reporting to Members, ensuring that all Members are fully informed of their financial stakes and returns.

5.3 DISTRIBUTION POLICY

Distributions will be made from the net profits generated by ARIBIA LLC and its series, after setting aside adequate reserves for future operations, capital investments, and contingencies. The timing and amount of distributions will be determined by the Board, taking into account the Company's and its series' financial health and strategic needs.

Members will receive distributions in proportion to their ownership interests, ensuring an equitable return on investment.

5.4 RESERVE FUNDS AND CONTINGENCY PLANNING

Each series, under the direction of its Manager and with oversight from the Board, will maintain a reserve fund to cover unexpected expenses, maintenance needs, and potential market fluctuations, safeguarding the financial stability of the series and the Company.

The size and utilization of reserve funds will be reviewed periodically, with adjustments made as necessary to reflect the operational needs and financial strategies of ARIBIA LLC and its series.

5.5 HANDLING OF DEBT AND FINANCIAL OBLIGATIONS

Debt and other financial obligations specific to a series or the Company at large will be managed in accordance with the terms set forth in the respective loan agreements, with oversight from the Board to ensure favorable terms and conditions that align with the Company's financial interests.

The process for incurring new debt or refinancing existing obligations will involve a thorough review and approval by the Board, ensuring that any financial leverage is utilized strategically and responsibly.

5.6 TRANSPARENCY IN FINANCIAL REPORTING

Regular and detailed financial reporting is mandated for each series and the Company as a whole, providing a comprehensive view of financial performance, asset management, and cash flows. These reports will be made available to all Members, ensuring a high level of transparency and accountability.

An annual audit conducted by an independent auditor may be required to verify the accuracy of financial statements, providing an additional layer of transparency and trust for all Members.

ARTICLE VI: INTRA-SERIES LOANS AND FINANCIAL TRANSACTIONS

6.1 AUTHORIZATION FOR INTRA-SERIES FINANCIAL TRANSACTIONS

ARIBIA LLC permits financial transactions, including loans and asset transfers, between its series, subject to stringent oversight and governance to ensure such transactions are conducted fairly and in the best interest of the Company as a whole.

All intra-series financial transactions must be authorized by the Board of Directors, with detailed terms documented and recorded.

6.2 TERMS AND CONDITIONS OF INTRA-SERIES TRANSACTIONS

The terms of any intra-series loan or financial transaction must reflect arm's length transactions, with interest rates, repayment terms, and other conditions that are fair, reasonable, and market-competitive.

Transactions must be documented in written agreements, outlining all pertinent terms and conditions, and must be ratified by the Board of Directors to ensure transparency and accountability.

6.3 USE AND MANAGEMENT OF FUNDS

Funds transferred through intra-series transactions must be used explicitly for purposes that align with the strategic objectives and operational needs of the borrowing series, with clear accountability mechanisms in place to track the use and impact of such funds.

6.4 REPORTING AND RECORD-KEEPING

Detailed records of all intra-series financial transactions, including loan agreements, repayment schedules, and transactional documents, must be maintained accurately and made available for audit and review by the Board of Directors and, if necessary, by Members during annual meetings or upon reasonable request.

6.5 COMPLIANCE AND REGULATORY ADHERENCE

The Company ensures that all intra-series loans and financial transactions comply with applicable laws and regulations, including those specific to Series LLCs in Illinois. The Company will undertake due diligence to prevent any adverse legal or tax implications arising from such transactions.

6.6 DISPUTE RESOLUTION IN INTRA-SERIES TRANSACTIONS

In the event of disputes arising from intra-series loans or financial transactions, a pre-defined dispute resolution mechanism, as outlined in the governance framework of the Company, will be employed. This may involve internal mediation, third-party arbitration, or other agreed-upon dispute resolution processes.

ARTICLE VII: EXPANSION OF MEMBERSHIP WITHIN SERIES

7.1 CRITERIA FOR ADDING NEW MEMBERS

New members may be added to individual series within ARIBIA LLC, subject to specific criteria that align with the strategic goals and operational needs of the series and the Company as a whole. These criteria include capital contribution requirements, expertise, strategic value, and alignment with the series' business objectives.

7.2 PROCESS FOR ADDING NEW MEMBERS

The process for introducing new members to a series involves a detailed evaluation by the Board of Directors, followed by a majority vote of the existing Members of ARIBIA LLC. Prospective members must be vetted for their potential contributions, financial stability, and compatibility with the series' and Company's culture and goals.

New members must formally agree to the terms of the series-specific operating agreement and the overarching ARIBIA LLC Operating Agreement, acknowledging their rights, responsibilities, and obligations as members.

7.3 CAPITAL CONTRIBUTIONS AND OWNERSHIP INTERESTS

The capital contributions made by new members, whether in cash, property, or services, shall be evaluated and agreed upon by the existing Members and documented in the series' records. These contributions will determine the new member's ownership interest in the series, reflecting their share in profits, losses, and distributions.

7.4 ADJUSTMENT OF EXISTING MEMBERS' INTERESTS

The addition of new members to a series may result in the adjustment of existing members' ownership interests. Such adjustments will be made transparently and equitably, with clear communication to and consent from affected members, ensuring the maintenance of trust and fairness within the series and the Company.

ARTICLE VIII: MEMBER WITHDRAWAL, VALUATION, AND STRUCTURING BUYOUT OR SHARE TRANSFER DEALS

8.1 NOTIFICATION OF WITHDRAWAL

A member wishing to withdraw from ARIBIA LLC or any of its series must provide formal notification, triggering the commencement of the withdrawal process and valuation of the member's shares.

8.2 INITIAL VALUATION

Upon receipt of the withdrawal notification, an initial valuation of the withdrawing member's shares will be conducted based on the agreed-upon valuation methodology outlined in the Operating Agreement or this Amendment. This valuation serves as the benchmark for the buyout or share transfer deal.

8.3 STRUCTURING THE BUYOUT OR SHARE TRANSFER DEAL

ARIBIA LLC has up to 2 years from the date of withdrawal notification to structure the buyout or share transfer deal. This period allows the Company to navigate financial planning, member negotiations, and strategic considerations effectively.

8.4 FINAL VALUATION AT DEAL STRUCTURING

At the time the buyout or share transfer deal is structured, a final valuation of the withdrawing member's shares will be performed. This ensures that the valuation reflects the current financial state and market conditions related to the member's interest in the Company or the specific series.

8.5 UTILIZATION OF LESSER VALUATION

The buyout amount or share transfer value will be based on the lesser of the two valuations (initial valuation at the time of withdrawal notification and final valuation at deal structuring) to protect both the withdrawing member and the Company from significant market fluctuations and financial risks.

8.6 AGREEMENT ON TERMS

The terms of the buyout or share transfer, including the agreed-upon valuation, payment schedules, and other conditions, will be formalized in a legally binding agreement, ensuring clarity and fairness in the transaction.

8.7 OPERATIONAL CONTINUITY

Throughout the valuation, deal structuring, and execution process, the Company will ensure operational continuity and stability, minimizing impact on its activities and those of any affected series.

8.8 RECORD-KEEPING AND DOCUMENTATION

All valuations, negotiations, agreements, and transactions related to the member withdrawal will be thoroughly documented, and Company records will be updated to reflect the changes in membership and capital structure accurately.

ARTICLE IX: EQUITY GRANTS AND MEMBER COMMITMENT

9.1 Equity Grants to New Members

The President of ARIBIA LLC has the authority to bring on new members by offering equity in the company in exchange for significant contributions, roles, or services provided to the company. These equity grants are subject to approval by the Board of Directors and must align with the strategic objectives and operational needs of the company.

9.2 VESTING SCHEDULE

Equity granted to new members will be subject to a vesting schedule, which ties the full ownership of the equity to a predefined period of service or achievement of specific milestones within the company. The vesting schedule will be detailed in the equity grant agreement and will reflect the value and importance of the contributions expected from the new member.

9.3 VALUATION AND COMMITMENT PERIOD

The period of commitment required from new members receiving equity grants will be directly related to the value of their shares at the time of the equity transfer and its current market value. The formula or method for calculating this commitment period will be clearly outlined in the equity grant agreement, ensuring it is fair and equitable based on the value of the equity granted.

9.4 CONDITIONS FOR EARLY DEPARTURE

Should a new member wish to depart from the company before the end of their commitment period, conditions outlined in the equity grant agreement will apply. These may include forfeiture of a portion of the vested equity, buy-back options at a predetermined valuation, or other conditions agreed upon at the time of the equity grant.

9.5 LEGAL AND FINANCIAL IMPLICATIONS

The equity grant agreement will also detail the legal and financial implications of the equity transfer, vesting schedule, and commitment period, including tax implications, rights and obligations of the new member, and conditions under which the equity grant may be modified or terminated.

9.6 DOCUMENTATION AND RECORD-KEEPING

All details related to equity grants, including the vesting schedule, commitment period calculation, and conditions for early departure, will be thoroughly documented in equity grant agreements and maintained in the company's records. This ensures transparency, accountability, and ease of management.

ARTICLE X: VALUATION AND EQUITY GRANTS

10.1 VALUATION METHODOLOGY

ARIBIA LLC and its series shall adopt a consistent and transparent valuation methodology to determine the fair market value of the Company and each series for purposes including, but not limited to, equity grants, member buyouts, and share transfer transactions. The valuation will consider factors such as net asset value, income generation, market comparables, and potential for growth.

10.2 EQUITY GRANTS

The Company may issue equity grants to members or employees as part of compensation, incentive plans, or in exchange for capital contributions. Such grants shall be subject to:

Vesting Conditions: Equity grants may be subject to vesting conditions, based on time, performance milestones, or other criteria as defined at the time of grant.

Approval Process: All equity grants must be approved by the Board of Managers, ensuring alignment with the Company's strategic objectives and financial health.

10.3 EQUITY GRANT VALUATION

At the time of an equity grant, the fair market value of the equity interest will be determined using the adopted valuation methodology. This ensures that equity grants are issued in a manner that reflects the true value of the interest in ARIBIA LLC or its series.

10.4 DOCUMENTATION AND RECORD-KEEPING

All equity grants, including the terms, conditions, and valuation at the time of the grant, will be documented in writing. Records of all grants will be maintained by ARIBIA LLC to ensure transparency and accountability.

ARTICLE XI: INTRA-SERIES FINANCIAL TRANSACTIONS AND LOANS

11.1 AUTHORIZATION AND OVERSIGHT

ARIBIA LLC authorizes financial transactions, including loans and asset transfers, between its series, subject to strict oversight to ensure these transactions are conducted in the best interest of the Company and its members. All intra-series transactions must be approved by the Board of Managers, with terms set forth in written agreements.

11.2 TERMS AND CONDITIONS

Terms of intra-series transactions, including interest rates, repayment schedules, and purposes of the loans or transfers, shall reflect market conditions and be comparable to arm's-length transactions. These conditions ensure fairness and transparency within all intra-series financial dealings.

11.3 USE OF FUNDS

Funds transferred between series must be utilized for purposes that align with the strategic objectives and operational needs of the borrowing

series. Clear accountability mechanisms shall be in place to track the use of funds and assess their impact on achieving the series' goals.

11.4 REPORTING AND RECORD-KEEPING

Detailed records of all intra-series transactions, including justifications, terms, and compliance with the agreed-upon conditions, must be maintained. These records will be subject to review by the Board of Managers and, when appropriate, by the members during annual meetings or upon request.

11.5 COMPLIANCE AND REGULATORY ADHERENCE

All intra-series financial transactions must comply with applicable laws and regulations, ensuring no adverse legal or tax implications for ARIBIA LLC or its series. The Company will undertake necessary due diligence for each transaction.

11.6 DISPUTE RESOLUTION

In the event of disputes related to intra-series transactions, a pre-defined mechanism, including mediation or arbitration, will be employed to resolve issues. This ensures that any disagreements are settled in a manner that preserves the integrity and harmony within the Company.

ARTICLE XII: AMENDMENT OF THE OPERATING AGREEMENT

12.1 PROPOSAL FOR AMENDMENT

Any member of ARIBIA LLC may propose an amendment to this Operating Agreement. The proposal must be submitted in writing to the Board of Managers, outlining the intended changes and the rationale behind the proposed amendment.

12.2 REVIEW AND APPROVAL PROCESS

The Board of Managers shall review the proposed amendment, considering its impact on the Company's operations, structure, and member interests. Approval of an amendment requires a majority vote of the Board of Managers. For amendments affecting the series structure or altering fundamental aspects of the Company, a higher threshold of consent, potentially a supermajority or unanimous vote from the members, may be required.

12.3 MEMBER CONSENT

For significant amendments that alter the rights, obligations, or structure of the Company or its series, member consent will be sought. Each member's vote shall be proportional to their ownership interest in the Company or the affected series.

12.4 NOTIFICATION AND ADOPTION

Upon approval, members shall be notified of the amendment, its implications, and the effective date of its adoption. The amendment shall be considered adopted and effective upon meeting the required approval criteria and after all members have been duly notified.

12.5 DOCUMENTATION AND RECORD-KEEPING

The amendment shall be documented in writing, signed by the authorized representatives of ARIBIA LLC, and attached to the Operating Agreement as an official amendment. A copy of the amended Operating Agreement shall be provided to all members and securely stored in the Company's records.

ARTICLE XIII: DISSOLUTION AND LIQUIDATION

13.1 INITIATION OF DISSOLUTION

Dissolution of ARIBIA LLC, or any of its series, may be initiated upon a decision by the Board of Managers or by a vote meeting the supermajority consent of the Company's members. The decision to dissolve must consider the long-term viability, strategic objectives, and financial health of the Company or the specific series in question.

13.2 LIQUIDATION PROCESS

Upon the decision to dissolve, a detailed plan for the liquidation of assets, satisfaction of liabilities, and distribution of remaining assets to members shall be developed. This plan shall be executed under the supervision of an appointed Liquidation Manager or Committee, ensuring compliance with applicable laws and fairness to all parties involved.

13.3 ASSET DISTRIBUTION

Assets remaining after the satisfaction of all debts and liabilities shall be distributed to members in proportion to their ownership interests in the Company or the series being dissolved. Special consideration shall be given to the specific contributions and capital accounts of members in determining the distribution.

13.4 MEMBER NOTIFICATION AND APPROVAL

Members shall be notified of the dissolution decision, the liquidation plan, and their respective rights and obligations during the liquidation process. Member approval may be required for key decisions during the liquidation, in accordance with the supermajority or unanimous consent provisions outlined in this Agreement.

13.5 FINAL ACCOUNTING AND REPORTING

A final accounting of the dissolution and liquidation process shall be prepared, detailing the asset liquidation, debt settlements, and member distributions. This final report shall be provided to all members for review and record.

13.6 TERMINATION OF LEGAL EXISTENCE

Upon completion of the liquidation process and distribution of assets, necessary legal filings shall be made to terminate the legal existence of ARIBIA LLC or the dissolved series, in accordance with state and federal regulations.

ARTICLE XIV: DISPUTE RESOLUTION

14.1 SCOPE

This article addresses the mechanisms for resolving disputes within ARIBIA LLC, including conflicts between members, disputes between a member and the LLC, or between different series.

14.2 MEDIATION

As a first step, parties involved in a dispute shall attempt to resolve the conflict through mediation. The Company shall engage a neutral third-party mediator to facilitate discussions and guide the parties toward a mutually acceptable resolution.

14.3 ARBITRATION

Should mediation fail to resolve the dispute, the matter may be escalated to binding arbitration. The arbitration shall be conducted in accordance with the rules of a recognized arbitration association mutually agreed upon by the parties involved.

14.4 EXTERNAL DISPUTE RESOLUTION SERVICES

In certain cases, the Company may resort to external dispute resolution services to manage complex disputes that require specialized expertise.

14.5 CONFIDENTIALITY

All dispute resolution proceedings shall be treated as confidential, and the details of the dispute, as well as the outcome, shall not be disclosed outside the proceedings without mutual consent

ARTICLE XVI: RECORD KEEPING AND REPORTING

16.1 RECORD MAINTENANCE

ARIBIA LLC is committed to maintaining accurate, transparent, and accessible records, including financial statements, meeting minutes, member contributions, and transactions between series.

16.2 FINANCIAL REPORTING

The Company shall conduct regular financial reporting, providing members with updates on the financial health and performance of ARIBIA LLC and its series. These reports shall be prepared in accordance with generally accepted accounting principles (GAAP).

16.3 MEMBER ACCESS

Members shall have the right to access the Company's records related to their series or membership interest, subject to reasonable notice and confidentiality obligations.

ARTICLE XVII: TAX MATTERS

17.1 TAX TREATMENT

The tax treatment of ARIBIA LLC and each series shall be in accordance with applicable laws and regulations. The Company shall elect its tax status and manage tax obligations to optimize the financial well-being of the Company and its members.

17.2 MEMBER RESPONSIBILITIES

Members are responsible for reporting their share of profits, losses, and distributions for tax purposes, in alignment with the tax status of ARIBIA LLC and its series.

17.3 TAX REPORTING

The Company shall provide necessary tax documents to members, including K-1 forms for individual series, to facilitate accurate and timely tax reporting by members.

ATTACHMENTS

ATTACHMENT A - MEMBER LIST: This attachment should include a current list of all members of ARIBIA LLC, along with their contact information and ownership interests. If members belong to specific series, this should be clearly delineated.

ATTACHMENT B - SERIES DESIGNATION AND PURPOSES: Detailed information for each series established under ARIBIA LLC, including the name, designated purpose, principal assets, and any specific operational or financial structures unique to each series.

ATTACHMENT C - CAPITAL CONTRIBUTIONS AND OWNERSHIP INTERESTS: A record of initial and any subsequent capital contributions made by members to ARIBIA LLC and its individual series, correlating these contributions with the respective ownership interests.

ATTACHMENT D - EQUITY GRANT DOCUMENTATION: For any equity grants issued, documentation detailing the terms of the grants, including vesting schedules, valuation at the time of the grant, and any conditions attached to these grants.

ATTACHMENT E - APPROVED MEDIATORS AND ARBITRATORS: A list of approved mediators and arbitrators, or external dispute resolution services, that ARIBIA LLC may utilize for conflict resolution, as referenced in Article XIV.

ATTACHMENT F - FINANCIAL REPORTING AND TAX DOCUMENTATION SCHEDULE: An outline of the schedule for regular financial reporting and the provision of tax documents to members, ensuring compliance with Article XVI and Article XVII.

ATTACHMENT G - MEETING PROTOCOLS AND PROCEDURES: Detailed protocols and procedures for calling, conducting, and documenting both regular and special meetings of ARIBIA LLC, as stipulated in Article XV.

ATTACHMENT H - RECORD KEEPING AND ACCESS PROCEDURES: Guidelines on how records will be maintained and accessed by members, including any restrictions or requirements for accessing sensitive or confidential information.

ATTACHMENT I - AMENDMENT PROPOSAL FORM: A standardized form or template for members to use when proposing amendments to the Operating Agreement, facilitating a structured and consistent approach to suggesting changes.

The Attachments listed above are meant to be provided as they become available and may be added, amended, or replaced by mutual agreement of the Members without the need for a formal amendment to this Operating Agreement, provided that all Members are given proper notice of such changes. The Members acknowledge that certain Attachments may not be immediately available at the time of this Amendment and agree to provide and accept such Attachments at a later date, to be compiled and attached as they are finalized.

Nicholas Bianchi [Signature] ______________________ Nicholas A. Bianchi, President ARIBIA LLC Date: 05/27/2024	Luisa Arias [Signature] ______________________ Luisa F Arias, Secretary, ARIBIA LLC Date: 05/27/2024

EXHIBIT D

Shareholder Agreement

This AGREEMENT is made and entered into as of March 15, 2024, by and among:

Nicholas Anthony Jones Bianchi - 550 W Surf St. Apt 504, Chicago, Illinois 60657

Luisa Fernanda Montealegre Arias - 550 W Surf St. Apt 504, Chicago, Illinois 60657

Sharon Elizabeth Jones - 10772 Ironstone Dr S, Jacksonville, Florida 32246

(referred to collectively as "Shareholders" and individually as "Shareholder"), and ARIBIA LLC whose official address is 550 W Surf St, Chicago, Illinois 60657.

RECITALS

The Shareholders are all the shareholders of ARIBIA LLC ("the Limited Liability Company"), a Illinois Limited Liability Company.

The Shareholders believe it is in their best interest to unanimously agree to terms below related to the operation, management and control of the Limited Liability Company in order to achieve harmonious balance and direction.

AGREEMENT

In consideration of the agreements herein contained, the Shareholders agree as follows.

1. Shares Subject to This Agreement.

Each of the Shareholders owns the number of shares of common stock listed below:

Nicholas Anthony Jones Bianchi - 85
Luisa Fernanda Montealegre Arias - 10
Sharon Elizabeth Jones - 5

The shares listed above constitute all of the issued and outstanding capital stock of the Limited Liability Company. The Limited Liability Company acknowledges receipt from each Shareholder of the full consideration for the respective shares purchased by said Shareholder, and each Shareholder acknowledges receipt of certificates representing his or her shares. All of the shares listed above and any additional shares of the capital stock of the Limited Liability Company that may be acquired by the Shareholders in the future shall be subject to this Agreement.

2. Management and Control.

a. *Board of Directors.* Subject to Section 1, during the term of this Agreement the Board of Directors of the Limited Liability Company shall consist of all of the Shareholders, and annual or other elections of directors are waived. The Limited Liability Company shall be managed and controlled in accordance with this Agreement. Neither the Board nor the Shareholders shall be required to hold annual, regular, or special meetings, and any action or decision made by the Board or the Shareholders may be evidenced by any writing executed by the requisite number of Shareholders as specified in this Agreement, or otherwise as the Shareholders may agree in writing. Each Shareholder, as a member of the Board, however, agrees as such to consent to or vote in favor of any resolutions as may be required by persons with whom the

Limited Liability Company may have business dealings, such as, but not limited to, financial institutions and governmental agencies, to evidence corporate approvals or authorizations. Any Shareholder may authorize any other Shareholder to represent or act as proxy for the former at any meeting according to the written instructions, general or specific, of the authorizing Shareholder.

b. *Managing Shareholder.* Except as set forth in this Section, Nicholas Anthony Jones Bianchi, or his/her duly appointed successor (the "Managing Shareholder") shall manage, control, and operate the business and affairs of the Limited Liability Company as President and General Manager without any further action or approval by the Shareholders or the Board. The Managing Shareholder may be changed from time to time with the Consent of the Shareholders subject to the terms of any employment agreement between the Limited Liability Company and the Managing Shareholder. The Managing Shareholder shall not have the power or authority, without the Consent of the Shareholders to:

c. *Books, Records, and Reports.* The Managing Shareholder shall cause the Board to maintain the books, records, and other documents required by the Law. Notwithstanding any waiver thereof contained in the Bylaws of the Board, the Managing Shareholder shall cause the Board to furnish to the Shareholders an annual audited report.

d. *Conduct of Business.* The Managing Shareholder agrees to use the Shareholder's best efforts to cause the business of the Limited Liability Company to be conducted in accordance with sound business practices, in a lawful manner, and to endeavor to preserve for the Limited Liability Company the goodwill of its suppliers, customers, employees, and others having business relations with it.

e. *Shareholder Meetings.* There shall be no regular meetings of Shareholders of the Limited Liability Company.

f. *Employment of Shareholders.* The Shareholders shall hold the following offices of the Limited Liability Company, so long as they hold shares of stock of the Limited Liability Company, are active in the business of the Limited Liability Company and are able to perform their duties and responsibilities:

President: Nicholas Anthony Jones Bianchi
Vice President: Luisa Fernanda Montealegre Arias
Secretary: Luisa Fernanda Montealagre Arias
Treasurer: Nicholas Anthony Jones Bianchi

g. *Termination of an Officer.* Any Shareholder may be terminated, by action of the Shareholders, as an officer, director, or employee of the Limited Liability Company as provided in this Section. Termination shall become effective on the adoption by all of the other Shareholders, holding at least 50% of the aggregate shares of the Limited Liability Company, at a meeting duly held after 30 days' written notice has been given to the Shareholders, of a written resolution finding that the Shareholder has:

- Failed to fulfill their responsibilities or duties as an Officer
- Engaged in misconduct or a willful breach of this Agreement
- Ceased to hold shares in the Limited Liability Company
- Been convicted by any court of any offense punishable as a felony
- Maked an assignment or agreement for the benefit of the Limited Liability Company's creditors

In the event of any such termination, the terminated Shareholder agrees to sell to the Limited Liability Company, and the Limited Liability Company agrees to purchase, in proportion to the shares of the Limited Liability Company then owned by them, the shares of the Limited Liability Company then owned by the terminated Shareholder at a purchase price of $0.10 per share or $5,000, whichever is less. The purchased share shall then be distributed amongst the remaining Shareholders on a pro rata basis according to the percentage of the aggregate shares already owned by each remaining Shareholder. The terminated Shareholder shall be entitled to receive salary from the Limited Liability Company only for the period ending on the date of termination.

h. *Voting of Shares.* Each Shareholder shall vote or cause to be voted the shares of capital stock of the Limited Liability Company held for record or owned beneficially by the Shareholder in such a manner as will carry out the intents and purposes of, and effectuate and implement all of the covenants and agreements in this Agreement.

3. Distributions.

a. *Determination of Net Income or Loss.* For the purposes of this Agreement, the net income or loss of the Limited Liability Company for any accounting period shall be its gross income less the Limited Liability Company's expenses during that period, determined on an accrual basis in accordance with generally accepted accounting principles. Gross income shall include, but shall not be limited to, amounts received upon or in respect of investments of the Limited Liability Company, gains realized upon the sale or disposition of any property, and any other income received by the Limited Liability Company. Expenses shall include, but shall not be limited to, the expenses of conducting the business, salaries, interest on any loans or borrowings by the Limited Liability Company including any loans or advances to the Limited Liability Company by any Shareholder, taxes and assessments assessed to the Limited Liability Company or levied upon its properties and payable by it, depreciation of and losses on the Limited Liability Company's property (using any method of depreciation the Managing Shareholder deems appropriate), bad debts and contingencies for which reserves should properly be established, and any and all other expenses incidental to the conduct of the business of the Limited Liability Company.

b. *Regular Distributions of Net Income.* Unless the Managing Shareholder shall determine in good faith that the Limited Liability Company reasonably needs to retain the same to meet its obligations or to maintain a sound financial condition in light of the Limited Liability Company's reasonable financial needs, the net income of the Limited Liability Company in excess of $25,000.00 shall be distributed by the Limited Liability Company quarterly, proportionate to the percentage of shares owned by each Shareholder.

4. Dissolution.

a. *Restrictions on Voluntary Dissolution.* The Consent of the Shareholders shall be required to approve the voluntary dissolution of the Limited Liability Company and each Shareholder waives any right to the taking of that action by the approval, consent, or vote of a lesser percentage.

b. *Procedures During Winding Up.* On commencement of dissolution proceedings either by election of all Shareholders or otherwise, the Limited Liability Company will cease to carry on business except as necessary to wind up its business and distribute its assets. The Managing Shareholder will perform the following acts, as necessary, to wind up the affairs of the Limited Liability Company:

Employ agents and attorneys to liquidate and wind up the affairs of the Limited Liability Company;

Continue the business as necessary for the winding up of the affairs of the Limited Liability Company;

Carry out contracts and collect, pay, compromise, and settle debts and claims for or against the Limited Liability Company;

Defend suits brought against the Limited Liability Company;

Sue, in the name of the Limited Liability Company, for all sums due to the Limited Liability Company or recover any of its property;

Collect any amounts owing on subscriptions to shares or recover unlawful distributions;

Sell at public or private sale, exchange, convey, or otherwise dispose of all or any part of the assets of the Limited Liability Company for cash in an amount considered reasonable by the President, or his or her appointee(s); Make contracts and take any steps in the name of the Limited Liability Company that are necessary or convenient in order to wind up the affairs of the Limited Liability Company.

c. *Distribution of Assets on Dissolution.* The Managing Shareholder will apply the assets of the Limited Liability Company in the following order:

To all debts and liabilities of the Limited Liability Company in accordance with the law, including the expenses of dissolution and liquidation, but excluding any debts to a Shareholder;

To all senior debts to a Shareholder in accordance with the terms of any subordination agreement;

To the accrued and unpaid interest on unsubordinated debts to a Shareholder;

To the principal of unsubordinated debts to a Shareholder;

To undistributed net profits of the Limited Liability Company, subject to the provisions of this Agreement;

To repayment of the purchase price of the shares of the Limited Liability Company actually paid by each Shareholder; and, finally,

To the Shareholders in proportion to the number of shares of the Limited Liability Company held by each.

5. Voting.

a. *Certain Voting Requirements.* The consent of all Shareholders shall be required to approve any of the following actions by the Board, and each Shareholder hereby waives any right to the taking of any of such actions by approval, consent, or vote of a lesser percentage:

- Transfer of all or substantially all of the assets of the Limited Liability Company

6. Restrictions On Transfer.

a. *Restrictions on Transfer*. To accomplish the purposes of this Agreement, any transfer, sale, assignment, hypothecation, encumbrance, or alienation of any of the shares of the Limited Liability Company, other than according to the terms of this Agreement is void and transfers no right, title, or interest in or to those shares to the purported transferee, buyer, assignee, pledgee, or encumbrance holder. Each Shareholder shall have the right to vote shares held of record and to receive dividends paid on them until the shares are sold or transferred in accordance with this Agreement.

b. *Permitted Transfers.* A Shareholder may transfer all or any part of his or her shares to: a spouse, ancestors or lineal descendants or the spouses of any of such persons, or to any trust solely for the benefit of the Shareholder or any of the foregoing persons, provided that each such permitted transferee shall first agree in writing to be bound by the terms and provisions of this Agreement. A Shareholder may also transfer all or any part of his or her shares if that transfer is approved in writing by a majority of the aggregate of the remaining, untransferred shares.

7. Dispute Resolution.

Alternative Dispute Resolution. The parties will attempt to resolve any dispute arising out of or relating to this Agreement through friendly negotiations amongst the parties. If the matter is not resolved by negotiation, the parties will resolve the dispute using the below Alternative Dispute Resolution (ADR) procedure.

Any controversies or disputes arising out of or relating to this Agreement will be submitted to mediation in accordance with any statutory rules of mediation. If mediation is not successful in resolving the entire dispute, any outstanding issues will be submitted to binding arbitration under the rules of the American Arbitration Association. The arbitrator's award will be final, and judgment may be entered upon it by any court having proper jurisdiction.

8. Noncompetition, Trade Secrets.

a. ***Noncompetition.*** Each Shareholder agrees that as long as he or she is the owner, or in control of, any of the Limited Liability Company's shares, the Shareholder will not be employed, concerned, or financially interested, either directly or indirectly, in the same or a similar business as that conducted by the Limited Liability Company, or compete with the Limited Liability Company. Unless otherwise agreed to in writing by a majority of the remaining Shareholders, a departing Shareholder will not be employed, concerned, or financially interested, either directly or indirectly, in the same or a similar business as that conducted by the Limited Liability Company, or compete with the Limited Liability Company for a one-year period following the date the departing Shareholder conveys his or her shares if any customers of the same, similar, or competing business may be located within a 100 mile radius of the principal place of business of the Limited Liability Company.

b. *Trade Secrets.* Each Shareholder acknowledges that the customer lists, potential customer lists, trade secrets, processes, methods, and technical information of the Limited Liability Company and any other matters designated by the written consent of all Shareholders are valuable assets. Unless he or she obtains the written consent of each of the other Shareholders, each Shareholder agrees never to disclose to any individual and organization, except in authorized connection with the business of the Limited Liability Company, any customer list, or any name on that list, or any trade secret, process, or other matter referred to in this paragraph while the Shareholder holds, or has the control of, any shares of the Limited Liability Company, or at any later time.

This Agreement is in compliance with the Defend Trade Secrets Act and provides civil or criminal immunity to any individual for the disclosure of trade secrets: (i) made in confidence to a federal, state, or local government official, or to an attorney when the disclosure is to report suspected violations of the law; or (ii) in a complaint or other document filed in a lawsuit if made under seal.

9. Termination and Amendment.

a. This Agreement shall remain in effect until all the Shareholders agree to termination in writing. Notwithstanding an original issuance of shares by the Limited Liability Company to a new shareholder who does not become a party to this Agreement, this Agreement shall continue to the extent it is legally enforceable.

b. This Agreement may be amended only by a written agreement executed and delivered by each Shareholder.

10. Miscellaneous Provisions.

a. *Waiver of Law.* This Agreement does not alter or waive any provision of the Law except as expressly provided herein; provided, however, each Shareholder hereby expressly waives the provisions of the Law to the full extent permitted by the Law in order to uphold the provisions and validity of this Agreement and to cause this Agreement to be valid, binding, and enforceable in accordance with its terms upon each of the Shareholders and their respective transferees, successors and assigns.

b. *Notices.* Any notice under this Agreement shall be deemed sufficiently given by one party to another if in writing and if and when delivered or tendered either in person or by the deposit of it in the United States mail in a sealed envelope, registered or certified, with postage prepaid, addressed to the person to whom notice is being given at that person's address appearing on the records of the Limited Liability Company or any other address as may have been given by that person to the Limited Liability Company for the purposes of notice in accordance with this subsection. A notice not given as above shall, if it is in writing, be deemed given if and when actually received by the party to whom it is required or permitted to be given. It is the responsibility of each Shareholder to ensure that the Limited Liability Company has the Shareholder's correct address to receive notice.

c. *Governing Law.* This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois. Any action to enforce this Agreement must be brought within the state whose laws govern this Agreement.

d. *Captions.* Captions to sections, subsections, and paragraphs in this Agreement are inserted for convenience only and shall not affect the construction or interpretation of this Agreement.

e. *Counterparts and Duplicate Originals.* This Agreement and all amendments may be executed in several counterparts and each counterpart shall constitute a duplicate original of the same instrument.

f. *Successors.* Anything in this Agreement to the contrary notwithstanding, any transferee, successor, holder, or assignee, whether voluntary, by operation of law, or otherwise, of the shares of the Limited Liability Company shall be subject to and bound by this Agreement as fully as though a signatory.

g. *Severability.* Any provision prohibited by, unlawful or unenforceable under any applicable law of any jurisdiction shall as to that jurisdiction be ineffective without affecting any other provision of this Agreement. To the full extent, however, that the provisions of that applicable law may be waived, they are waived to the end that this Agreement be deemed to be a valid and binding agreement enforceable in accordance with its terms.

h. *Recovery of Expenses.* Except as provided in Section 7 with respect to alternative dispute resolution, if a dispute arises with respect to this Agreement, the prevailing party shall be entitled to recover all expenses, including, without limitation, reasonable attorneys' fees and expenses, incurred in ascertaining that party's rights, in preparing to enforce, or in enforcing that party's rights under this Agreement, whether or not it was necessary for that party to institute suit.

i. *Remedies.* The parties shall have all remedies for breach of this Agreement available to them provided by law or equity. Without limiting the generality of the foregoing, the parties agree that in addition to all other rights and remedies available at law or in equity, the parties shall be entitled to obtain specific performance of the obligations of each party to this Agreement and immediate injunctive relief and that in the event any action or proceeding is brought in equity to enforce the same, no Shareholder will urge, as a defense, that there is an adequate remedy at law.

j. *Third Parties.* Nothing in this Agreement, whether express or implied, is intended to confer any rights or remedies under or by reason of this Agreement on any persons other than the parties to it and the Limited Liability Company and their respective permitted transferees, successors, and assigns, nor is anything in this Agreement intended to relieve or discharge the obligation or liability of any third persons to any party to this Agreement or to the Limited Liability Company, nor shall any provision give any third person any right of subrogation or action over or against any party to this Agreement or the Limited Liability Company.

k. *Time.* Time is of the essence of this Agreement.

l. *Filing of Agreement.* A copy of this Agreement, as amended from time to time, shall be filed with the Secretary of the Limited Liability Company for inspection by any prospective purchaser of shares of the Limited Liability Company.

IN WITNESS WHEREOF, the parties have signed this Agreement on the date above written.

SHAREHOLDERS:

By: Nicholas Anthony Jones Bianchi Date: 06/02/2024
Nicholas Anthony Jones Bianchi

By: Luisa Fernanda Montealegre Arias Date: 06/02/2024
Luisa Fernanda Montealegre Arias

By: Sharon Elizabeth Jones Date: 06/02/2024
Sharon Elizabeth Jones

EXHIBIT E

FINAL NOTICE OF OUTSTANDING RENT PAYMENTS FOR MORADA MAMI PROPERTY – IMMEDIATE ACTION REQUIRED

October 24, 2024

To: Luisa Arias
CC: Camilo Arias

Dear Luisa,

This is your final notice regarding the overdue rent for the **Morada Mami** property. As of today, the payment for October 2024 is now 9 days late, and rent for June, July, August, and September 2024 also remains unpaid. As per our agreement, rent is due on the 15th of each month.

Outstanding Rent Payments (as of October 24, 2024):

1. **June 2024 Rent Due:** $400
2. **July 2024 Rent Due:** $400
3. **August 2024 Rent Due:** $400
4. **September 2024 Rent Due:** $400
5. **October 2024 Rent Due:** $400

Prior Contested Amounts Due:

1. **September 2023 to February 2024 Rent (6 months):** $2,400

(Rent at $400 per month for 6 months remains unpaid)

Total Rent Due Immediately:

1. **Outstanding Rent for June to October 2024 (5 months):** $2,000
2. **Prior Unpaid Rent for September 2023 to February 2024 (6 months):** $2,400

Total Outstanding Balance Due: $4,400

Immediate Payment Required:

FINAL NOTICE OF OUTSTANDING RENT PAYMENTS FOR MORADA MAMI PROPERTY – IMMEDIATE ACTION REQUIRED

October 24, 2024

The total amount of **$4,400** is due by **October 31, 2024**, regardless of any contested amounts. Continued delays or non-payment will adversely affect your standing and complicate your family's situation at **Morada Mami**.

Sale of Morada Mami:

As you are aware, **Morada Mami** is currently being listed for sale. We are actively seeking an investor willing to purchase the property with the intention of allowing your family to stay, should they choose to do so. However, this becomes increasingly difficult without consistent rent payments. Any potential buyer will inquire about the property's rental income, and the lack of rent payments will raise significant concerns during negotiations.

Consequences of Non-Compliance:

If payment is not received by **October 31, 2024**, we will have no choice but to initiate the eviction process. This process is lengthy and complex, and given the current circumstances, it would severely impact your family's ability to remain in the property during the sale and complicate future arrangements.

Payment Plan Option:

If you are experiencing difficulties making the full payment immediately, we are willing to discuss a payment plan to help you address these overdue payments. However, arrangements must be made promptly, and no extensions beyond **October 31, 2024**, will be granted without a formal agreement in place.

Please note, as you no longer have any vested interest in ARIBIA LLC, this is your final opportunity to resolve the matter before we take legal action.

I urge you to take immediate action to prevent these consequences from affecting you and your family. Should you wish to discuss a payment plan or have any questions, please contact me immediately.

Best regards,

Nicholas Bianchi
President, ARIBIA LLC

FINAL NOTICE OF OUTSTANDING RENT PAYMENTS FOR MORADA MAMI PROPERTY – IMMEDIATE ACTION REQUIRED

October 24, 2024

SPANISH TRANSLATION

Asunto: Último Aviso de Pagos de Alquiler Pendientes para la Propiedad Morada Mami – Acción Inmediata Requerida

Para: Luisa Arias

CC: Camilo Arias (a través de WhatsApp/Mensaje de texto)

Estimada Luisa,

Este es tu último aviso sobre el alquiler atrasado de la propiedad Morada Mami. Hasta la fecha, el pago de octubre de 2024 tiene 9 días de retraso, y el alquiler de junio, julio, agosto y septiembre de 2024 también permanece sin pagar. Según nuestro acuerdo, el alquiler vence el día 15 de cada mes.

Pagos de Alquiler Pendientes (a partir del 24 de octubre de 2024):

1. Alquiler de junio de 2024: $400
2. Alquiler de julio de 2024: $400
3. Alquiler de agosto de 2024: $400
4. Alquiler de septiembre de 2024: $400
5. Alquiler de octubre de 2024: $400

Montos Anteriores Impugnados:

1. Alquiler de septiembre de 2023 a febrero de 2024 (6 meses): $2,400
2. (El alquiler de $400 por mes durante 6 meses permanece sin pagar)

FINAL NOTICE OF OUTSTANDING RENT PAYMENTS FOR MORADA MAMI PROPERTY – IMMEDIATE ACTION REQUIRED

October 24, 2024

Total de Alquiler Debido Inmediatamente:

1. Alquiler Pendiente de junio a octubre de 2024 (5 meses): $2,000
2. Alquiler Anterior Impago de septiembre de 2023 a febrero de 2024 (6 meses): $2,400

Total de Saldo Pendiente: $4,400

Pago Inmediato Requerido:

El monto total de $4,400 debe ser pagado antes del 31 de octubre de 2024, independientemente de cualquier monto impugnado. Los retrasos continuos o la falta de pago afectarán negativamente tu situación y complicarán la situación de tu familia en Morada Mami.

Venta de Morada Mami:

Como ya sabes, Morada Mami está actualmente en venta. Estamos buscando activamente un inversor dispuesto a comprar la propiedad con la intención de permitir que tu familia se quede, si así lo desean. Sin embargo, esto se vuelve cada vez más difícil sin pagos de alquiler consistentes. Cualquier comprador potencial indagará sobre los ingresos por alquiler de la propiedad, y la falta de pagos de alquiler generará preocupaciones significativas durante las negociaciones.

Consecuencias de la No Conformidad:

Si no se recibe el pago antes del 31 de octubre de 2024, no tendremos otra opción que iniciar el proceso de desalojo. Este proceso es largo y complejo, y dada la situación actual, afectaría gravemente la capacidad de tu familia para permanecer en la propiedad durante la venta y complicaría futuros arreglos.

Opción de Plan de Pago:

Si estás teniendo dificultades para hacer el pago total de inmediato, estamos dispuestos a discutir un plan de pago para ayudarte a abordar estos pagos atrasados. Sin embargo, los arreglos deben hacerse de inmediato, y no se concederán extensiones más allá del 31 de octubre de 2024 sin un acuerdo formal.

Ten en cuenta que, dado que ya no tienes ningún interés en ARIBIA LLC, esta es tu última oportunidad para resolver el asunto antes de que tomemos acciones legales.

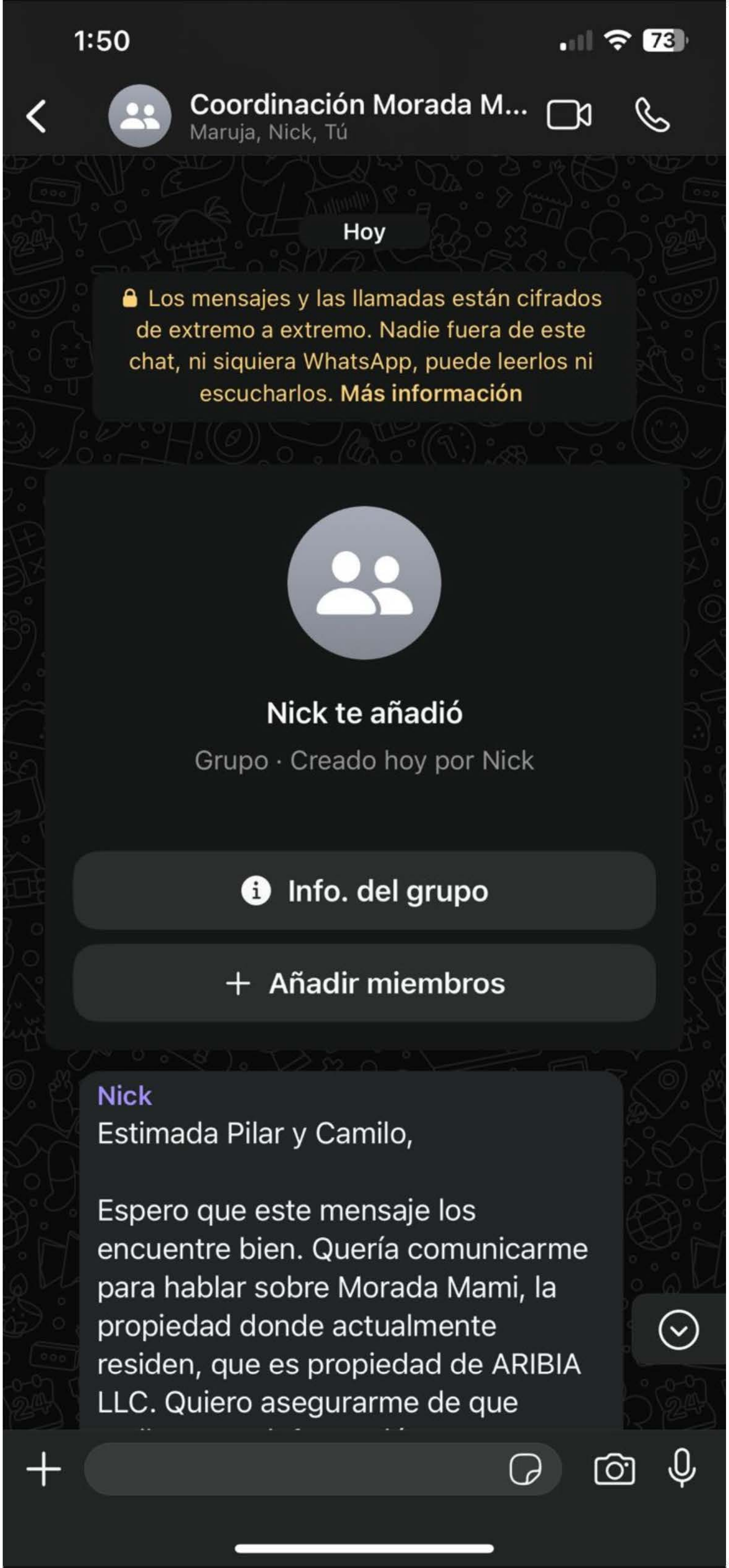
Te insto a que tomes medidas inmediatas para evitar que estas consecuencias afecten a ti y a tu familia. Estoy incluyendo a Camilo en esta comunicación a través de WhatsApp/mensaje de texto para asegurarme de que ambos estén plenamente informados sobre la situación y las acciones necesarias. Si deseas discutir un plan de pago o tienes alguna pregunta, contáctame de inmediato.

Atentamente,

Nicholas Bianchi

Presidente, ARIBIA LLC

GROUP EXHIBIT F



6:15 30

Familia 💞 💞
Hermano, Mami 👸🏻, Tato 💙, ...

Thursday

Hermano Colombia

Forwarded

FINAL NOTICE OF OUTSTANDING RENT PAYMENTS FOR MORADA MAMI PROPERTY – IMMEDIATE ACTION REQUIRED

October 24, 2024

To: Luisa Arias
CC: Camilo Arias

Dear Luisa,

This is your final notice regarding the overdue rent for the **Morada Mami** property.

pdf Final Notice of Delinquent Payments for Morada Mami...

5 pages • 209 KB • pdf

Estimados Camilo y Pilar,

Quiero mantenerlos informados, como lo prometí anteriormente, y comentarles que he enviado un aviso final sobre los pagos de alquiler pendientes de Morada Mami a Luisa. Este aviso detalla los montos adeudados y las acciones necesarias para resolver la situación.

Es crucial abordar estos pagos pendientes por varias razones:

1. Registro Financiero: Los posibles inversores quieren ver que el alquiler se haya pagado a

6:15 30

Familia 💞💞
Hermano, Mami 👸🏻, Tato 💙, ...

Es crucial abordar estos pagos pendientes por varias razones:

1. Registro Financiero: Los posibles inversores quieren ver que el alquiler se haya pagado a tiempo. Los pagos atrasados generan preocupaciones sobre la salud financiera de la propiedad.
2. Negociaciones: Los alquileres impagos pueden dificultar las negociaciones para una venta, haciendo que los inversores se sientan inseguros sobre el valor de la propiedad.
3. Arreglos Futuros de Vivienda: Mantener los pagos al día nos ayuda a mostrar a los inversores que su familia puede quedarse en la unidad después de la venta, si así lo desean.

Es en el mejor interés de su familia resolver estos asuntos rápidamente para asegurar una transición sin problemas.

Por favor,

1:32 PM

6:15

Hermano Colombia

Forwarded

Subject: Final Notice and Comprehensive Payment Plan Proposal for Morada Mami – Immediate Action Required

Date: October 27, 2024

Hi Luisa and family,

This is a final notice regarding your overdue and ongoing rent for Morada Mami.

Final Offer Arias 2024 10 28.pdf

7 pages • 343 KB • pdf

5:32 PM

Hola a todos,

Dado que no he recibido respuesta a mis intentos anteriores de resolver esto de manera amistosa, me comunico una última vez con una oferta justa y no negociable para saldar el alquiler pendiente de Morada Mami antes de proceder con la escalación.

La propuesta incluye un plan de pago manejable e incentivos, que en total serían los siguientes si la propiedad se vende en febrero:

- Cada Miembro de la Familia (LuLu, Pilar, Alejandro): 4,560,000 COP propiedad se vende en febrero:

- Cada Miembro de la Familia (LuLu, Pilar, Alejandro): 4,560,000 COP
- Camilo: 9,120,000 COP por coordinar las visitas
- Total Potencial de Deuda Perdonada: 16,800,000 COP, lo que significa que una venta rápida beneficia a todos

Por favor, revisen esta oferta detenidamente. Para confirmar la aceptación, respondan antes de las 10:00 a.m., hora central, mañana, 29 de octubre de 2024. Si no recibo una respuesta antes de este plazo, procederemos con la notificación a la HOA y el inicio del proceso de desalojo.

Espero que podamos resolver esto sin necesidad de tomar medidas adicionales.

Saludos,
Nick

5:33 PM

No pues tan "amigable" 5:43 PM

Subject: Final Notice and Comprehensive Payment Plan Proposal for Morada Mami – Immediate Action Required

Date: October 27, 2024

Hi Luisa and family,

This is a final notice regarding your overdue and ongoing rent for Morada Mami. Currently, you owe **back rent totaling $4,800**, which includes **uncontested back rent** for **May, June, July, August, September, and October** ($2,400) and a **contested amount** from **September 2023 to February 2024** ($2,400). If immediate action is not taken to resolve these debts, we are prepared to notify the HOA of non-payment and have engaged a local attorney to initiate the eviction process if necessary.

In addition to the back rent owed, we will seek to recover funds paid for legal fees and any other costs associated with this process.

To help you manage this balance, we are offering a comprehensive payment plan that will cover the full back rent and current rent obligations while providing additional incentives upon the successful sale of Morada Mami. This plan also requires your assistance in preparing the property for sale, including coordinating access for showings.

Please confirm acceptance of this payment plan by 10 a.m. Central Time tomorrow, October 28, 2024. If we do not receive a response by this deadline, we will proceed with legal actions to recover the owed amounts.

Immediate Payment Requirement:

- **October Rent Payment**: $400 – **Due by Friday, November 3, 2024**
  - This payment is required separately to keep the account in good standing.

Comprehensive Payment Plan for Full Balance:

Starting in **November 2024**, payments of **$600 per month** will be due on the **15th of each month**. Each payment will be applied as **$400 toward current rent** and **$200 toward the back rent balance**.

Updated Payment Schedule:

Month	Amount Due	Date Due	Allocation for Current Rent	Allocation for Back Rent
October 2024	$400	11/3/2024	$400	$0
November 2024	$600	11/15/2024	$400	$200
December 2024	$600	12/15/2024	$400	$200
January 2025	$600	1/15/2025	$400	$200
February 2025	$600	2/15/2025	$400	$200
March 2025	$600	3/15/2025	$400	$200
April 2025	$600	4/15/2025	$400	$200
May 2025	$600	5/15/2025	$400	$200
June 2025	$600	6/15/2025	$400	$200
July 2025	$600	7/15/2025	$400	$200
Continues monthly	...		...	...
October 2026	$600	10/15/2026	$400	$200
November 2026	$600	11/15/2026	$400	$200
December 2026	$600	12/15/2026	$400	$200
Total				**$4800**

Payments of $600 per month will continue until the full **$4,800 back rent balance** is covered, which would be completed by **December 2026**.

What You Will Receive Upon Completion of This Plan and Sale:

1. **Forgiveness of Remaining Balance Upon Sale**:
   - If all payments are made on time, beginning with the **October rent payment of $400 due by November 3, 2024**, any remaining balance of back rent will be forgiven upon the successful sale of Morada Mami. **<u>This means that a quicker sale benefits you by eliminating the remaining debt balance faster and relieving future payment obligations</u>.**
2. **Incentive from Sale Proceeds**:
   - Upon completion of the sale, each individual (Luisa, Camilo, Pilar, and Alejandro) will receive **2% of the net sale proceeds**, with Camilo receiving an additional **2%** to recognize his role in coordinating showings and ensuring availability. **These funds will be paid to each individual within 60 days of ARIBIA receiving funds from the buyer**.

Example Calculation for $90,000 Sale Price

*If Morada Mami is sold for **$90,000**, the incentive calculations will be based on the **net sale proceeds** after all necessary costs are subtracted. Here's how it would look:*

1. ***Sale Price**: $90,000*

2. ***Deductions****:*
    a. ***Nicholas's Tax Payment on the Initial Purchase****: $28,000*
    b. ***Initial Purchase Fees****: $5,000*
    c. ***Any New Fees or Taxes****: TBD*

Assuming no additional fees, the ***Net Sale Proceeds*** *would be:*

90,000 - (28,000 + 5,000) = 57,000

3. ***Incentive Calculation****:*
    a. ***LuLu, Pilar, and Alejandro****: 2% each of $57,000 =* ***$1,140 each***
    b. ***Camilo****: 4% of $57,000 =* ***$2,280***
4. *Total Financial Benefit to Family* ***if Sale Happens in February 2025****:*
    a. ***Total Incentives****: $5,700*
    b. ***Forgiven Debt (Remaining Back Rent)****: $4,200*
    c. *Total Benefit****: 5,700 + 4,200 = $9,900***

This is our **final offer and is non-negotiable**. We believe this is a fair and reasonable arrangement that all parties should carefully consider.

This payment plan is contingent upon on-time payments starting with October rent. Failure to meet any scheduled payments will void this arrangement, resulting in immediate legal actions, including eviction if necessary.

Please confirm acceptance by 10 a.m. Central Time tomorrow, October 29, 2024. If we do not receive a response, we will proceed with the necessary legal actions.

Best regards,
Nick Bianchi
President, ARIBIA LLC

Asunto: Notificación Final y Propuesta de Plan de Pago Integral para Morada Mami – Acción Inmediata Requerida

Fecha: 27 de octubre de 2024

Hola Luisa y familia,

Esta es una notificación final sobre el alquiler vencido y en curso de la propiedad Morada Mami. Actualmente, tienes una deuda de $4,800 en alquiler atrasado, que incluye alquileres sin disputa de mayo, junio, julio, agosto, septiembre y octubre ($2,400) y una cantidad en disputa desde septiembre de 2023 hasta febrero de 2024 ($2,400). Si no se toma acción inmediata para resolver estas deudas, estamos preparados para notificar a la administración de la propiedad (HOA) sobre la falta de pago y hemos contratado a un abogado local para iniciar el proceso de desalojo si es necesario.

Además del alquiler atrasado, buscaremos recuperar los fondos pagados en honorarios legales y otros costos asociados con este proceso.

Para ayudarte a gestionar este saldo, te ofrecemos un plan de pago integral que cubrirá tanto el alquiler atrasado como las obligaciones de alquiler actuales, al tiempo que proporciona incentivos adicionales una vez que se logre la venta exitosa de Morada Mami. Este plan también requiere tu colaboración para preparar la propiedad para la venta, incluyendo la coordinación de acceso para las visitas

Por favor, confirma la aceptación de este plan de pago antes de las 10:00 a.m. hora central de mañana, 28 de octubre de 2024. Si no recibimos una respuesta antes de esta fecha límite, procederemos con acciones legales para recuperar los montos adeudados.

Pago Inmediato Requerido:

- Pago de Alquiler de Octubre: $400 – Fecha de vencimiento: viernes, 3 de noviembre de 2024
- Este pago es obligatorio para mantener la cuenta al día.

Plan de Pago Integral para el Saldo Completo:

A partir de noviembre de 2024, se deberá realizar un pago de $600 mensuales cada día 15 del mes. Cada pago se aplicará como $400 para el alquiler mensual actual y $200 para el saldo del alquiler atrasado.

Cronograma de Pagos Actualizado:

Mes	Monto a Pagar	Fecha de Pago	Asignación para Alquiler Actual	Asignación para Alquiler Atrasado
Octubre 2024	$400	03/11/2024	$400	$0
Noviembre 2024	$600	15/11/2024	$400	$200
Diciembre 2024	$600	15/12/2024	$400	$200
Enero 2025	$600	15/01/2025	$400	$200
Febrero 2025	$600	15/02/2025	$400	$200
Marzo 2025	$600	15/03/2025	$400	$200
Abril 2025	$600	15/04/2025	$400	$200
Mayo 2025	$600	15/05/2025	$400	$200
Junio 2025	$600	15/06/2025	$400	$200
Julio 2025	$600	15/07/2025	$400	$200
...	...	...	...	...
Octubre 2026	$600	15/10/2026	$400	$200
Noviembre 2026	$600	15/11/2026	$400	$200
Diciembre 2026	$600	15/12/2026	$400	$200
Total				**$4800**

Los pagos de $600 mensuales continuarán hasta que se cubra el saldo completo de $4,800 en alquiler atrasado, lo cual se completaría en diciembre de 2026.

Lo que Recibirás al Completar este Plan y la Venta:

1. Perdón del Saldo Restante al Vender la Propiedad:
   a. Si todos los pagos se realizan a tiempo, comenzando con el pago de $400 de octubre, que vence el 3 de noviembre de 2024, cualquier saldo restante de alquiler atrasado será perdonado tras la venta exitosa de Morada Mami. Esto significa que una venta rápida te beneficiará

eliminando el saldo de deuda restante y aliviando futuras obligaciones de pago.

2. Incentivo de los Ingresos de la Venta:
    a. Tras completar la venta, cada individuo (Luisa, Camilo, Pilar y Alejandro) recibirá 2% de los ingresos netos de la venta, con Camilo recibiendo un 2% adicional para reconocer su papel en la coordinación de visitas y disponibilidad. Estos fondos se pagarán a cada persona dentro de los 60 días posteriores a que ARIBIA reciba los fondos del comprador.

Ejemplo de Cálculo para una Venta de $90,000

Si Morada Mami se vende por $90,000, el cálculo del incentivo se basará en los ingresos netos de la venta después de restar todos los costos necesarios. Aquí te mostramos cómo sería:

1. *Precio de Venta: $90,000*
2. *Deducciones:*
    a. *Pago de impuestos de Nicholas en la compra inicial: $28,000*
    b. *Honorarios iniciales de compra: $5,000*
    c. *Cualquier otro impuesto o tarifa adicional: TBD*

Suponiendo que no haya costos adicionales, los ingresos netos de la venta serían: 90,000 - (28,000 + 5,000) = 57,000

3. ***Cálculo de Incentivo:***
    a. *LuLu, Pilar y Alejandro: 2% cada uno de $57,000* ***= $1,140 cada uno ~4,560,000 COP cada uno***
    b. *Camilo: 4% de $57,000 = $2,280* ***~ 9,120,000 COP***
4. ***Beneficio Financiero Total para la Familia si la Venta Ocurre en Febrero de 2025:***
    a. *Total de Incentivos: $5,700*
    b. *Deuda Perdonada (Alquiler Atrasado Restante): $4,200*
    c. ***Beneficio Total: 5,700 + 4,200 = $ 9,900 /~ <u>39,600,000 COP</u>***

Esta es nuestra oferta final y no es negociable. Creemos que es un arreglo justo y que todas las partes deben considerar detenidamente.

Este plan de pagos depende de que los pagos se realicen puntualmente a partir del alquiler de octubre. El incumplimiento de cualquier pago programado anulará este acuerdo, lo que resultará en acciones legales inmediatas, incluido el desalojo si es necesario.

<u>Por favor, confirma la aceptación antes de las 10:00 a.m. hora central de mañana, 29 de octubre de 2024. Si no recibimos una respuesta, procederemos con las acciones legales necesarias.</u>

Saludos cordiales,

Nick Bianchi

Presidente, ARIBIA LLC

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
LUISA ARIAS MONTEALEGRE,	)	
Petitioner,	)	
	)	
and	)	Case No.
	)	
NICHOLAS BIANCHI,	)	
Respondent.	)	

AFFIDAVIT OF LUISA ARIAS MONTEALEGRE
EXHIBIT G

I, LUISA ARIAS MONTELEAGRE, being first duly sworn on oath depose and state and do hereby certify that the statements set forth in this instrument are true and correct except as to matters therein stated to be on information and belief, and as to such matters, I certifty that I verily believe the same to be true, and if called upon to testify, I would state as folloiws:

A. I am the Petitioner herein.

B. I am competent to testify to the factual allegations contained herein based upon my own personal knowledge, unless otherwise stated upon information and belief.

C. That if I were called to testify, I could competently testify that the facts set forth in this Emergency Petition for Temporary Restraining Order and other Alternative Relief are true, accurate, and correct.

D. This matter is brought forth an as an emergency as I just recently became aware that the Nicholas has hired a management company and intends to immediately sell the property that we jointly own in Medellin, Columbia, and it is foreseeable that Nicholas will continue selling, liquidating or otherwise disposing of Aribia LLC and / or any assets held within the company and associated series, and any income earned from the same unless and thereby dissipate the marital estate if a temporary restraining order is not granted

E. Further affiant sayeth naught.

Luisa Arias Montealegre (Oct 30, 2024 11:54 CDT)

Luisa Arias Monteleagre, Petitioner